

NOVEMBER

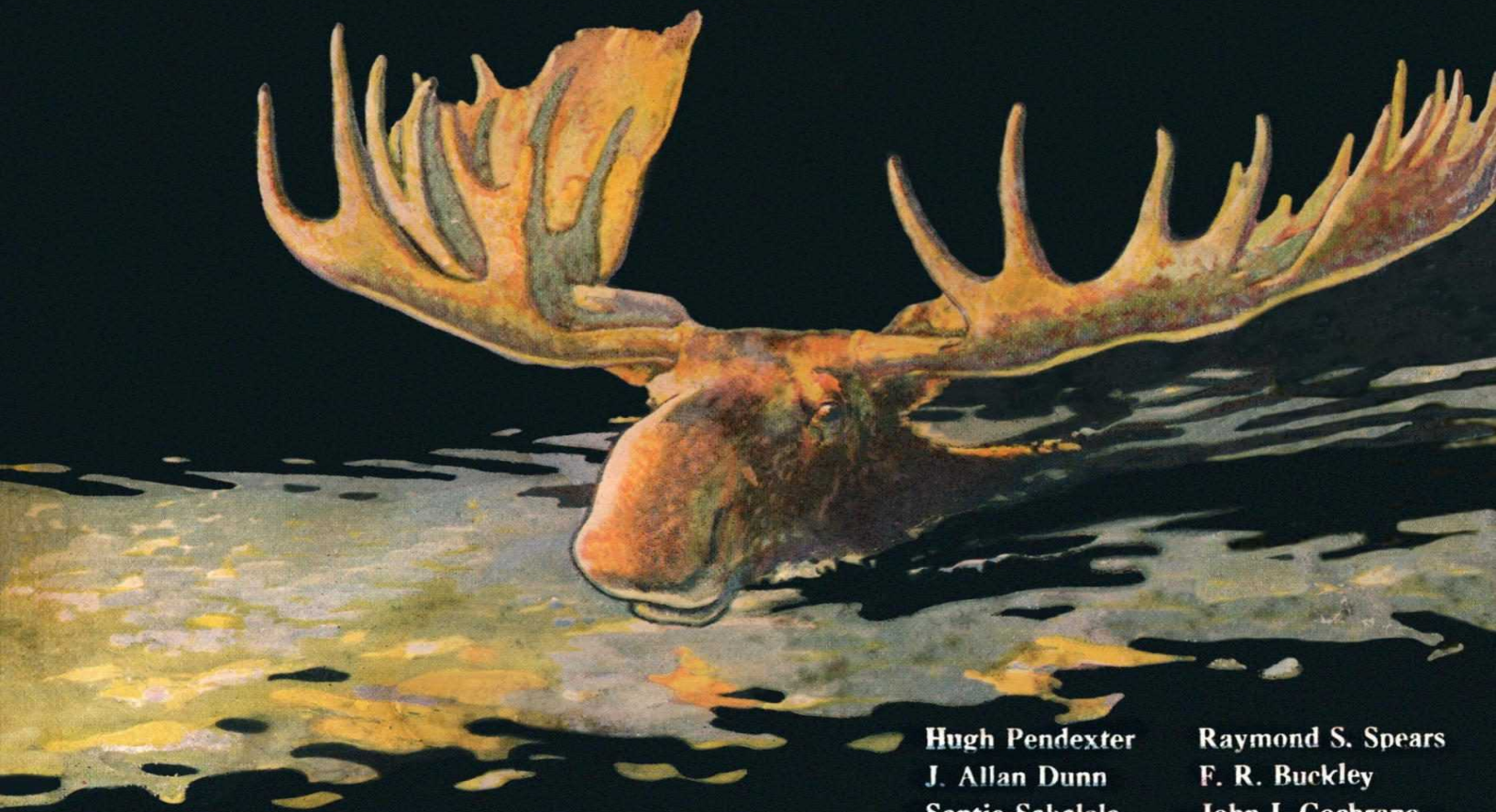
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Adventure



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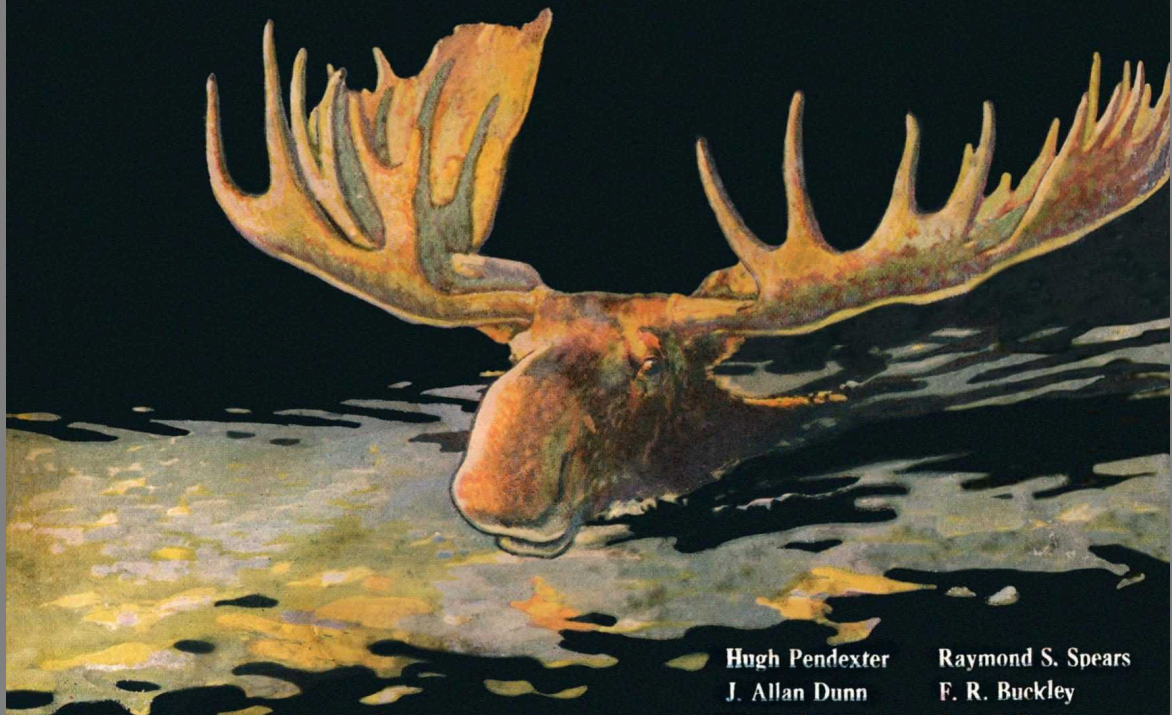
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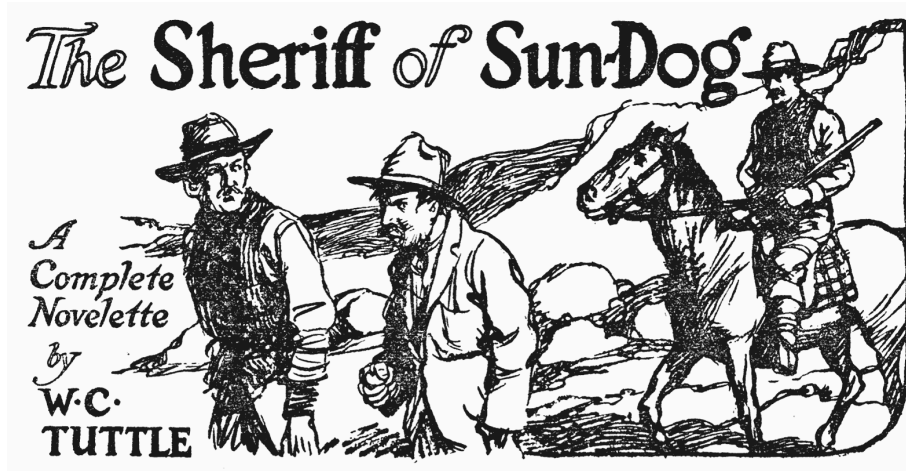
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*** START OF THE PROJECT GUTENBERG EBOOK THE SHERIFF
OF SUN-DOG ***



THE SHERIFF OF SUN-DOG

By W. C. Tuttle

Author of "Sun-Dog Trails," "Law Rustlers," etc.

It was a hot day in Marlin City, the county seat of Sun-Dog County. It had often been said that there was only one tree between Marlin City and the Arctic Circle to break the north winds of Winter, and that the aforementioned tree was too far north to afford Marlin City any shade during the Summer.

At the hitch-rack, in front of the Dollar Down saloon and gambling hall, stood a forlorn looking saddle-horse, head down, as though seeking the shade of its own body. A long lean dog of nondescript breed slouched along the hot board sidewalk, hunting a shady spot. From Le Blanc's blacksmith shop came the odors of burning hoof, as the muscular French-Canadian swore at the stifling heat and tried to fit a hot shoe to the hoof of a half-broke bronco.

Inside the sheriff's office sat "Brick" Davidson, the new sheriff, and his deputy "Silent" Slade. The former sheriff, "Bunty" Blair, had appointed Brick as his deputy, and had resigned in Brick's favor. Bunty was glad to resign. Sun-Dog was no place for a weak-kneed sheriff, such as Bunty Blair. There was nothing weak about Brick Davidson. His flaming thatch of bright, brick-colored hair, a thin freckled nose, and an indomitable view of right and wrong, bade fair to make changes in cowland. Sun-Dog County

did not elect Brick Davidson, although they had a chance at the last election. Sun-Dog followed the lines of least resistance and elected Bunty Blair.

In fact, Brick had received the whole sum of seven votes—including his own. Lafe Freeman, owner of the Nine Bar Nine outfit, of which Brick had been foreman, stated that Brick knew too much to get elected sheriff.

Bunty's resignation and Brick's appointment had been ratified by a majority of the board of county commissioners. Bill Voorhies, owner of the Lazy H outfit, and the acknowledged leader of the commissioners, was not in favor of Brick's appointment, but the board had acted in the absence of Voorhies and he could do nothing less than agree.

Voorhies was a ponderous sort of person, loud of mouth, slow of action, and desiring power above all things. In the past three months he had shipped a great number of beef cattle, and was entertaining a buyer at the time Brick was appointed. He bossed the county commissioners and bragged of the fact. Voorhies might have become a big politician and a power in the State, but——

Through sound reasoning Brick had cleared Scott Martin and his adopted daughter, Jean, of all complicity in the robbery of the Whippoorwill stage, and had succeeded in bringing retribution where retribution was due. Two men had paid the penalty with their lives, while the third, Zell Mohr, had been given a life sentence, but in trying to escape from the train on the way to the penitentiary had been instantly killed. Incidentally, Brick had won the thousand dollar reward. It had been a big day in Marlin City, but after the smoke of battle cleared away, Marlin City and Sun-Dog County settled down to the humdrum existence of cow country and small cow town. It was all in a day's work. Few men gave Brick credit for doing anything out of the ordinary. He was just Brick Davidson, cowpuncher; rather fast with a gun, and ready of wit. Brick lived to grin.

He had an overdeveloped sense of humor, which, at times, grated on the sensibilities of slower thinkers. When it was announced that Brick had been appointed sheriff to succeed Bunty Blair, many of the graybeards shook their heads. Sun-Dog County needed a wiser, cooler head. Brick's hair was too red. He'd last quick. Brick heard some of the mumblings, and confided to Silent Slade.

“They’re scared of me, Silent, don’t yuh know it?”

“Well,” Silent had replied, “well, hadn’t they ought to, Brick?”

Silent’s reply was very matter of fact. Silent did not try to be funny. He worshiped Brick, and trailed him around like a great dog—a dog six feet six inches tall, built in proportion, with a long crooked nose and a big humorous mouth. His hands were big and ungainly, but they lost their clumsiness when called upon to reach for the big, black-handled Colt .44 which swung from their owner’s hip. In that respect they were very capable. Just now, Silent was perusing some old reward notices, while Brick spelled out a typewritten letter which Silent had brought from the post-office.

Brick’s mouth drew down at the corners and his blue eyes twinkled as he looked up from the letter and glanced at Silent.

“Goin’ to be —— rised and a chunk placed under its corners around here,” announced Brick.

Silent looked up quickly. He had been bemoaning the lack of action just a few minutes before.

“For gosh sakes, Brick, whatcha mean?” he demanded anxiously.

“Letter from the cattle association.”

Brick snapped his finger against the sheet of paper and glanced up at the ceiling, puffing vainly at an unlit cigaret.

“Oh!” said Silent, relaxing back in his chair. “What’s eatin’ ’em now?”

“’Member me writing ’em about makin’ a maverick law?”

“Heard yuh say yuh was goin’ to, Brick, but didn’t pay no ’tention at the time. What was it?”

“Billy Slavin, the secretary, and me are friends. Me and him punched cows down on the Little Missouri six years ago. Silent, did yuh ever stop to think what mavericks mean to a cow-man?”

Silent half-nodded and waited for Brick to continue.

“Them danged unbranded animals are to blame for half the cattle stealin’ in this country, Silent. Mebbe she’s a even break, you’ll say. It ain’t. I know some honest cow-men which this maverick stuff hurts. I spoke to Billy about it. He took it up. This here letter——” Brick opened it up again and held it up for Silent’s inspection——“this letter says that from now on all

mavericks are to be held, subject to disposal by the association. The cattlemen own and run the association, Silent; and these mavericks belong to the cattlemen. What is fairer than to let 'em dispose of these critters and use the money in the interests of the cattlemen? I kinda like it myself."

Silent bit his lip reflectively and nodded slowly.

"There will be —— rised, Brick, y'betcha, and I sure hope that your carcass and mine won't be used to bolster up none of the corners."

A maverick is an unbranded animal, usually a calf, which had been born in a secluded part of the range, or accidentally overlooked by the cowboys. This calf, weaned away from its mother, after which no brand may claim ownership, becomes a prey to the first cattleman who can burn on a brand. Hundreds of mavericks were branded every year on the ranges; many cowboys acquiring a herd in this manner.

Brick Davidson knew that this practise was all wrong, as it gave a dishonest cattleman an edge over an honest one, and also was an inducement for a dishonest cowpuncher to overlook his employer's young stock until such a time as he could "maverick" a few for himself and get a start. Sun-Dog County was not without its rustling troubles. Brick knew that he had work cut out for him—if he upheld his oath of office. Brick knew every inch of the Sun-Dog ranges, knew the cattle business from "dally to hondo" as Lafe Freeman had said, and under ordinary circumstances would be an ideal peace officer for the county, but Sun-Dog did not seem to want Brick Davidson's protection—as was witnessed by seven votes including Brick's own vote. Brick got up from his desk, put the paper inside his vest, and picked up his hat.

"Yuh ain't goin' out in the heat, are yuh?" asked Silent.

Brick nodded.

"Yeah. I've got to pass around the bad news."

"What's the hurry?"

"This here office is runnin' today—not *mañana*," smiled Brick. "You stay here and don't let anybody bust the jail. If any outlaws come along with a price on their heads, jew 'em down, Silent. Get 'em as cheap——"

"Aw-w-w,——!" grunted Silent. "Lemme go along."

"And shut up the office?" Brick appeared very indignant. "'Member them old Pinkerton books we had at the ranch? 'Member they had a eye

painted on the cover, and the words 'We Never Sleep'? Do yuh? That's us, *sabe?*”

“All right, all right,” grunted Silent. “While you're gone I'll paint a eye on the door.”

“Make it a mouth,” grinned Brick. “And above it put, 'We Never Shut Up.'”

Old Jeff Seldon owned the Star Dot, horse and cattle outfit, and also owned a grudge against humanity. Although only about fifty-five years of age, he looked seventy-five. He was below average height. His skin was like yellow parchment, his nose hooked; his mouth so thin-lipped that he appeared to have only a slit, inside of which were a motley collection of misfit teeth and ancient gold fillings. His eyes were deep-set and savage, as they peered out past the thin, high bridge of his nose—peered out with disfavor upon every one and every thing.

Jeff Seldon had come from Dakota, and bought out the Star Dot outfit a year before, bringing his five cowboys with him. It is doubtful whether Seldon could have hired a cowboy in Sun-Dog County, for Seldon's reputation was known.

He had practically been driven from Dakota for an unpardonable offence. In cowland a cowboy is welcome at any cow-man's table. His bunk-house is always big enough to sleep one more. It was merely range etiquette. If the owner was not at home, the visitor was welcome to enter the premises, cook his meals and occupy the beds.

Two cowboys, tired, hungry, stopped at Jeff Seldon's ranch. They stabled their horses, and started for the ranch-house, when Seldon met them.

“The town is just fourteen miles down that road,” stated Seldon. “I am not runnin' a hotel.”

“Much obliged,” said one of the cowboys, and they traveled on.

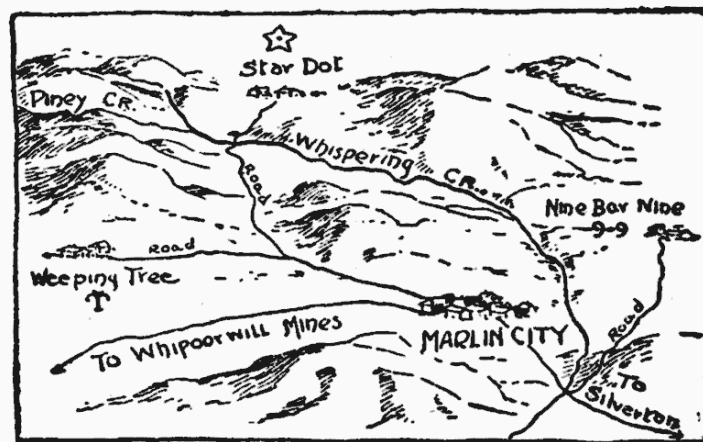
From that day on, Seldon was a man apart from the range-folk. His stock was never picked up in a round-up. No man spoke to him. His cows never brought in calves, and the range country ate beef that did not bear the diner's brand. Seldon had plenty of money, and stood the loss as long as possible, but eventually sold out and traveled north.

If Seldon was crabbed before this mistake, he was a hundred times more soured on the world afterward.

He mixed little with Sun-Dog folks. He was a bachelor. His five men, Pete Kane, the foreman, Frank Fellows, “Bun” Partner, Jim Malone and Hal Breamer, were hard riders, hard drinkers, and close mouthed, even in their cups. The Star Dot ranch-house was seven miles from Marlin City, and adjoined the Weeping Tree range.

The ownership of the Weeping Tree had never been settled. Zell Mohr had owned it, but Zell was dead. Before his arrest and conviction he had given Scott Martin the right to occupy the old Weeping Tree ranch-house and to use the land. Zell had sold his Silverton property, but no one knew of any disposition having been made of the Weeping Tree.

Brick rode straight for the Star Dot ranch. There was no reason for passing the order to the Star Dot outfit first, but it happened that the Star Dot was so located that Brick could easily return past the Weeping Tree ranch in time for supper. Brick was a biscuit fiend, and he knew that Jean Martin was the best biscuit builder in the world. Therefore Brick hummed a little range song and totally ignored the heat. Some day he was going to get up nerve enough to ask Jean to marry him—some day, maybe tomorrow. Brick was a lot like a Mexican, in that respect. Tomorrow looked like the very best day to speak to her about it—always tomorrow.



Pete Kane and Jimmy Malone were just coming out of the ranch-house door as Brick rode up. Kane was undeniably handsome of face and there was a wild, free grace to his figure, a dash and swing that denoted plenty of

animal vigor. His tiny brown mustache was waxed to needle points, and his insolent brown eyes stared at Brick in mock terror.

“Well, if it ain’t the policeman!” he exclaimed.

Jimmy Malone, a short, stocky cowboy, square of features, stared at Brick, and a frown centered above his eyes. Jimmy Malone did not like officers of the law. Brick ignored Kane’s sarcasm, although he felt it keenly. It was not like Brick to ignore a gibe, but Brick was representing the law now.

“Jeff Seldon to home?” he asked.

“He is!” snapped a voice and Brick glanced at the door, where Seldon was standing, half dressed and with a boot in his hand. “Whatcha want?”

Seldon was plainly hostile to Brick, but Brick merely grinned at him. Seldon stepped out to the edge of the porch, one sock half-on and flopping from his foot.

“Can’tcha talk?” he rasped. “Whatcha want here, Davidson?”

“Just passin’ out word that the cattle association is goin’ to take charge of all mavericks from now on.”

Seldon stared at him and then at Kane. Kane sneered. Brick’s statement was perhaps an insinuation that the Star Dot dealt strongly in mavericked stock, but Brick did not mean it to sound as such.

“I’m startin’ out to pass the word,” continued Brick. “Got a letter——”

“Hol’ on! Hol’ on!” Seldon fairly exploded with wrath, and took two steps down from the porch. “You accusin’ me of maverickin’?”

“Hold on you’self!” snapped Brick. “Nobody’s accusin’ you of anythin’.”

“Whatcha talkin’ thataway to me fer?” Seldon’s voice rasped and broke in righteous indignation.

“I ain’t accusin’ anybody,” soothed Brick. “The cattle association is goin’ to take charge of all unbranded stock from now on, and I——”

“—— the association!” roared Seldon. “I don’t belong to no association. I hope that the sheep run ’em out of the range!”

“Don’t yelp,” laughed Brick. “Talk natural, Seldon.”

“I’ll talk as I —— please! No penny-ante sheriff can come out here ——”

“Whoa, Blaze!” gritted Brick. “Don’t get personal, Seldon. I don’t care if you don’t belong to the association. I’ve been ordered to protect their interests, and I reckon I’ll foller out them orders.”

“You’d make a good protector for a calf,” observed Kane, and Malone laughed outright.

“Yuh may find that out,” agreed Brick easily.

“Protect ——!” roared Seldon. “They wouldn’t elect yuh sheriff, but yuh run a blazer on Bunty Blair and——”

“I wouldn’t talk thataway if I was you,” interrupted Brick. “I ain’t never done you no harm, Seldon. I’m out here to pass out an order that was given to me.”

“Who made that order?” demanded Seldon. “Tell me that, will yuh?”

“The association made it, Seldon; but I suggested it, if yuh must know.”

“The —— you did!” Seldon’s parchment-like face seemed to wrinkle with wrath and he groped for words.

“You—you think you’re a little —— on wheels, don’tcha? Mebbe yuh think that Sun-Dog is goin’ to put yuh on a pedestal and worship yuh, but you’ve got the wrong hunch, lemme tell yuh that. I’ll run my ranch to suit myself, and I don’t want no —— sheriff ridin’ up to my door and tellin’ me that I can’t do this and I can’t do that. *Sabe?*”

“Bust a blood-vessel, if yuh don’t watch out,” observed Brick. “I knowed a feller like you, Seldon. He had a nasty tongue, too. Got mad at a dog one day and fell dead kickin’ at it. You better be careful.”

Seldon leaned back against a porch-post, quivering with anger, unable to find words for a fitting reply.

“If you’re all through—vamoose!” said Kane, jerking his thumb toward the road. “Next time yuh come here bring a warrant; otherwise—not. We don’t ask no favors of the sheriff’s office, and we ain’t interested in the cattle association.”

Brick dropped the right hand off the horn of his saddle and leaned back, but made no move to go.

“Whatcha stayin’ around here for?” Seldon seemed to get his breath back.

“I’m the sheriff,” said Brick slowly. “I came out here to deliver an order. I’ve done my duty, as far as the sheriff end of it is concerned. You know what I told you concernin’ mavericks. That goes as she lays— And now,” Brick slid a few inches sidewise in his saddle, “now I’m just plain Brick Davidson, and I want one of your crowin’ roosters to start herdin’ me away from here.”

“Whatcha mean by that?” asked Kane.

“I’m through bein’ joshed, Kane.”

“I own this here ranch,” stated Seldon, rather inanely.

“Ownership unquestioned,” said Brick; “but that don’t give yuh no license to act like yuh did. I may be a penny-ante sheriff, but my game is too big for you or your punchers to set into.”

For a space of ten seconds Brick’s eyes bored into Kane’s.

Brick felt that Malone would be slow to draw, and Seldon was apparently unarmed. Kane had all the ear-marks of a gun-fighter, and wore his gun handy. Then Kane’s eyes fell. Brick shifted his gaze to Seldon.

“I hope you’ll see your way clear to abide by that maverick proposition, Seldon. I’m passin’ the word to every cattleman in this county. I reckon that the association men are in the majority.”

“You’re hopin’ quite a lot for a young feller.” Seldon was trying to keep his voice cool. “I was runnin’ cows when you was ridin’ a stick-horse, Davidson, and if you think for a minute that I’m payin’ any attention to such a —— fool order, you’re crazy as ——! You better resign and get a job herdin’ sheep.”

“When I can’t enforce the law—I will.”

Brick turned his horse and rode slowly away, taking a chance that few men would take under the circumstances.

“You better put in your application!” Seldon’s voice was a mirthful squeak, but Brick did not turn his head. From behind him came the laughter of the three men, but Brick could not trust himself to turn his head.

“You’re sheriff, Brick,” he told himself. “You’re paid to enforce the law—not to smoke up folks. Hang onto yourself, you danged fool! Nice thing

for a sheriff to throw lead at cheap cow-comedians.”

Brick shook his head and rode to a high point in the road before he allowed himself to look back at the Star Dot. He shook his head, glanced at the star on the lapel of his vest.

“—— such a job!” he exclaimed aloud. “Cripples a feller all up.”

At the forks of the road, where the road led up to Weeping Tree ranch, a buckboard and two restive horses pulled up, the driver waiting for Brick to arrive. At first glance the driver appeared to be a man, but a closer view proved her to be a big, raw-boned woman, middle aged, her face tanned to a deep bronze. Her hair was done up under a floppy sombrero and a well-worn duster covered her calico dress. She grinned at Brick, and jerked back on the lines, as the restive broncs surged forward.

“Howdy, Brickie,” she called.

“’Lo, Mrs. Wesson. How’s everything?”

“She was fine when I left.” Mrs. Wesson, wife of the general store-keeper at Marlin City, threw back her head and laughed heartily. Mrs. Wesson was rough of speech and jest, but her heart was pure gold. She loved Brick Davidson like a mother and deviled him at every opportunity. Brick reddened, and grinned down at her.

“Just breakin’ them horses?” he asked.

Mrs. Wesson glanced at the team and then up at Brick.

“Brick Davidson, you ain’t interested in broncs, are yuh? I’ve been drivin’ them coyote baits for a year and you sets there and asks me if I’m breakin’ ’em. You sure observes things, cowboy.”

“Oh, yeah,” murmured Brick, “I knowed ’em when yuh used to curry ’em, but they’re so shaggy and ragged lookin’——”

“Hol’ on! Cale Wesson curried ’em this mornin’.”

“Went out to,” corrected Brick, “and then went to sleep on the stable doorstep.”

Mrs. Wesson chuckled. Her husband had often told her that she could talk the handle off a pump, and she and Brick were due for an argument every time they met. Suddenly she sobered and looked up at Brick.

“Brick, why don’t yuh go to Weepin’ Tree once in a while? You ain’t been there for a week.”

“Been busy.”

“Yeah? Know Pete Kane? Do yuh? He ain’t busy. Giddap!”

The team sprang forward, and the buckboard whirled off down the road in a cloud of dust. Brick sat there and watched her fade off down the road. What did she mean? Pete Kane wasn’t busy? Was Pete Kane visiting the Weeping Tree ranch? Brick wrinkled his nose and wiped the perspiration off his face. Suddenly it struck Brick that he had no right to say where Pete Kane should or should not go. He wondered if Mrs. Wesson meant to warn him. He knew nothing about Pete Kane—nothing against him. He was not friendly to Brick, but Brick reasoned that that fact did not make him any less a man. There was nothing narrow about Brick’s philosophy of life.

He did not hate his enemies, neither did he turn the other cheek. He tried to hate Jeff Seldon, but the effort was a failure.

“Poor little devil,” said Brick aloud; “his soul must ’a’ been made of green stuff, and his ma left him out in the sun and he got warped.”

Mrs. Wesson was out of sight before Brick came out of reverie. Then he touched his horse with his spurs and went on toward Marlin City. Brick had decided to go to Weeping Tree—tomorrow.

But Brick did not go to Weeping Tree on the following day. News of the maverick situation had percolated considerable in twenty-four hours, and Marlin City’s hitch-rack held more than their usual quota of saddle-horses. The association men were in the majority, but few of them openly applauded the idea. It was a time-honored custom—wrong, no doubt—but the old cow-men were satisfied with the old order of things.

Brick was busy explaining his idea of it. Bunty Blair had acquired the Dollar Down saloon and gambling house, which was doing a thriving business on this day. Practically all of the nearest ranches were represented by either the foreman or owner. Neither Jeff Seldon nor Pete Kane was in evidence; but Breamer and Partner were there, saying nothing, but, as Brick observed, listening considerable. They left early in the forenoon.

“She’s all right,” said “Bunch” Thornton, owner of the AD brand—one of the old-timers. “She’s all right, Brick, but I’d say she’s cuttin’ out quite a lot for one sheriff to handle. Sure as —— she’s goin’ to raise discussions.”

“It ain’t a law,” argued Bill Voorhies. “‘Pears to me that she’s just a request. Mebbe they’re right, though. Maverickin’ sure does leave one big inducement for a feller to go crooked.”

“I ain’t sayin’ a word,” grinned Lafe Freeman, “but I’ve been wonderin’ why Bill Voorhies’ cows all have twins and my cows never bring in a calf.”

Bill Voorhies joined in the general laugh which followed, and every one faced the bar and took a drink on Bill. Scott Martin had taken no part in the conversation, standing apart from the rest. After the drink the party slowly broke up, without any one offering to back the sheriff or the association.

Scott Martin had taken no part in the conversation, owing to the fact that an ear affliction had caused partial deafness, and he was aware of the fact that men must shout to make him hear. He followed the rest of the men outside, got on his horse and rode away toward the ranch.

Brick and Silent stood in the doorway of their office and watched the men ride away.

“Didn’t see nothin’ of Seldon’s gang,” observed Silent.

“Couple of his punchers were over in the saloon,” replied Brick.

Brick had told Silent of his run-in with Seldon and Kane the day before, and Silent had bewailed the fact that Brick didn’t cripple the both of them.

“You look out for them,” advised Silent. “Seldon’s a danged old centipede. Remind me of an old buzzard, with that yaller skin drawed tight across his sharp old face and that wrinkled neck. Betcha forty dollars his blood only circ’lates as high as his collarbone.”

Brick laughed and they went into the office.

“Lot of fellers,” observed Brick, “ain’t got sense enough to protect themselves. You’d think they’d all be strong for this new order, wouldn’t yuh?”

“I dunno.” Silent wrinkled his long nose over the manufacture of a cigaret. “I reckon they all mavericks a little. Did yuh ever buy a watermelon, Brick? Didja ever notice that it ain’t sweet and juicy like the ones yuh stole when yuh was a kid? I reckon that cow-men never grow up—not thataway.”

“It ain’t right,” argued Brick.

Silent squinted at Brick’s serious expression.

“It ain’t,” agreed Silent. “Far as I’m concerned I don’t give a whoop-galoo how much they steal from each other, but this is your play, Brick, and I’m backin’ yuh from my belt both ways. If you say she’s wrong—she sure as —— is wrong, as far as I’m concerned.”

“Much obliged, Silent,” said Brick absently.

“No, yuh ain’t,” grinned Silent, “’cause yuh never heard what I said.”

“I think I’ll ride out to the Weeping Tree,” said Brick, paying no attention to Silent’s statement.

“You ain’t seen Scott Martin for almost an hour,” grinned Silent. “He’ll wonder if you’re mad at him—or somethin’.”

Brick picked up his hat and walked out the rear door. At the rear of the office stood the small stable. Brick saddled his horse and swung into the street. He noticed that Lafe Freeman’s team and buckboard were still at the hitch-rack, along with three saddle-horses.

Brick rode a single-footer, which ate up distance, and Brick, deep in thought, suddenly realized that he had swung off the main road and was within two miles of the Weeping Tree. He looped his reins around the horn of the saddle and gave a little attention to the manufacture of a cigaret. Suddenly his horse checked its stride and threw up its head. Brick instinctively reached for his reins and glanced up. Coming up out of the ravine, traveling towards the road was Scott Martin’s bay horse, still saddled and with reins dragging. Brick spurred ahead and crowded the horse against a sharp bank, where he got hold of the reins.

Brick’s first thought was that perhaps the horse had thrown Scott, but the horse was too well broken and gentle to throw an average rider. Perhaps Scott had cut across the hills and the horse had fallen with him. Brick rode down the ravine, leading the bay. The horse showed no signs of having fallen. Brick rode down the twisting ravine for perhaps an eighth of a mile, when he suddenly heard the bawling of a calf. He swung his horse through the thick mesquite and came out into a small valley. Just beyond him a tiny trickle of smoke, like a blue thread faded into the soft breeze. That fire could only mean one thing—somebody was branding in the open range.

Brick started to get off his horse, when out of the brush came a big spotted cow. There was no question but what that cow was angry. She emitted a blood-curdling bawl and came straight at Brick, who dropped the reins of the bay horse and spurred into the open. He whirled his horse around, untying his rope.

The cow seemed undecided whether to chase the loose horse or the one with the rider. Brick swung his loop and rode slowly in a circle. The cow, instead of rushing at Brick, whirled suddenly and started across the little valley on a lope. Brick spurred in behind her, belaboring her with the heavy metal hondo on his lariat. With a bellow of alarm the cow turned and went down the ravine, seemingly anxious to get away.

Brick drew up and turned his horse. Within twenty feet of him smoldered the tiny fire, and not over ten feet from the fire lay a calf, hog-tied. It was a young calf—too young to brand.

Brick swung down from his saddle and walked over to the calf.

“No wonder the old lady went on the prod,” he muttered. “Some son of a gun couldn’t wait for it to get weaned?”

Suddenly Brick’s eyes centered on an object just beyond the fire and almost concealed from his view behind a mesquite tangle. Brick’s hand flashed to his gun, and he walked slowly forward, the butt of his Colt resting against his thigh.

It was a man, lying on his face, with arms outspread. Brick did not have to turn him over to know it was Scott Martin. After the first shock, Brick’s eyes swept the surrounding country. A hundred yards away, outlined against the sky stood the spotted cow, watching for her baby, but the cow was the only living thing in sight.

Brick knelt beside Scott Martin, drew down one of the outflung arms and gently turned him over on his back. Martin was not dead. His eyes were open and staring, and his heart-beats were jerky, but he was still alive. Brick knew it was no use to examine the wound. Brick knew nothing about surgery, except to try and stop the flow of blood, but Scott Martin was not bleeding badly. There was a spot of blood between his shoulders, but no sign of a wound in the front of his shirt.

Brick got to his feet. He did not know exactly what to do. Suddenly he saw a rider, cutting the hill, far across the ravine. Brick waved his hat and yelled, but the rider was too far away. Then Brick pointed his pistol at the sky and six shots echoed across the hills. The horse stopped. Brick waved his hat. The man swung his horse around and rode straight toward Brick, who walked a little farther up on the hill and waited.

The man was Lynn Barnhardt, of the Lazy H. He was traveling cautiously up out of the ravine, when Brick called to him and he came on a gallop.

Brick walked back to where Martin lay.

“Howdy, Brick,” said Barnhardt, and then his eyes dropped to the man lying at Brick’s feet. His glance swept to the trussed calf and the smoldering fire and then back to Brick.

“Picks ’em young, don’t he?” Barnhardt’s voice was serious.

“Somebody shot him,” said Brick.

Barnhardt looked curiously at Brick and then down at Martin.

“Yeah, it looks kinda that way. Dead?”

“No. See anybody in the hills today, Lynn?”

Barnhardt shook his head.

“How yuh goin’ to get him to town?”

“Have to get a rig, I reckon. Will yuh stay here and—kinda watch him, while I get a rig and a doctor, Lynn?”

“Sure—go ahead. Whose calf is that, Brick?”

“It never got branded,” replied Brick; “but its ma wears a Nine Bar Nine.”

“Oh!” grunted Lynn. “Lafe Freeman’s, eh? Go ahead, Brick.”

Brick rode furiously back to Marlin City. Lafe Freeman’s team and buckboard was still at the hitch-rack; so Brick went straight into the Dollar Down. He found a poker game in progress, and Lafe Freeman was sitting behind a large stack of chips.

“Scott Martin has been shot,” stated Brick. “Can I borrow your rig, Lafe?”

“Shot?” exclaimed Bunch Thornton, starting out of his chair. “Scott Martin?”

“In the back,” replied Brick. “Where’s Doc Meyers?—anybody know?”

“He’s over in the restaurant,” said Le Blanc. “I see her go in dere jus’ now. I’m go to her—me.”

Le Blanc lumbered out of the doorway and across the street, while Lafe Freeman bow-legged his way to the hitch-rack.

Bunch Thornton bought a bottle of whisky from Bunty, shoved it into his pocket and ran for his horse. Bunch believed that nothing was as good as whisky in case of lead poisoning.

Doc Meyers came out of the restaurant door, urged by Le Blanc, who was talking more French than English, much to Doc Meyers’ mystification. Lafe yelled at the little doctor to come a-running, and the cavalcade dashed out of town, Lafe and the doctor riding a bouncing buckboard drawn by two running broncs, while ahead rode Brick and Bunch Thornton.

Brick and Bunch left the road near the ravine, but Lafe Freeman asked no questions. He had often sworn that he could drive a buckboard anywhere a man could ride a horse, and he almost proved it.

The doctor held on with both hands and prayed for the journey to end, while Lafe whooped at the broncos and drove them down into the ravine and out on the other side. The doctor fell off the seat a hundred yards from where Barnhardt was speaking to Brick, but Lafe drew up with a flourish and jumped out.

Doc Meyers lost no time in idle speculation. His examination was rapid, and no one spoke during the time he opened the back of Martin’s shirt and disclosed the bullet hole. The bullet had struck between the spine and the shoulder blade, on the right side. Meyers bandaged the wound and then motioned for them to put him in the buckboard.

“Is he hurt bad?” asked Brick softly.

“Yah. Bullet is in him yet. Likely one of them .41’s. That flat end on the bullet kinda stops it. Looks like it paralyzed him. Maybe—we’ll have to wait and see. Might be hard to recover the lead.”

Doc Meyers used no extra words. Mrs. Wesson had said that a diagnosis by Doc Meyers sounded like a telegram prepaid by a stingy man.

“Goin’ to take him home, ain’t we?” asked Lafe.

Brick nodded.

“Yeah, I reckon it’s best, Lafe.”

Bunch Thornton released the calf, and headed it down the ravine. Brick rode on the rear of the buckboard, helping the doctor hold Martin in an easy position, while Lynn Barnhardt led Brick’s horse.

Jean Martin was standing in the doorway when they swung into the quadrangle of the old Weeping Tree ranch-house. She gazed at them, wide-eyed and then ran out to the buckboard. Jean Martin was a tall, capable looking girl, with serious brown eyes and a tumbled mass of brown hair, which never seemed to stay “put” as she expressed it. Jean was barely past eighteen. Scott Martin had married her mother, a widow, when Jean was barely ten years of age, and less than a year later her mother had been killed by a misdirected bullet. Her love for her foster-father was as strong as it would have been for her own father. Although her name was not Martin, she had adopted her step-father’s name, and was known to every one as Scott Martin’s daughter.

Lafe Freeman tried to break it gently to her, but Jean only needed to be told the nature of the wound. Brick tried to tell her how he found her father, but she ran past him into the house to fix a bed. Brick helped Barnhardt carry him into the house, and then the men stood around silently and watched Doc Meyers prepare to try to find the bullet.

Jean’s face was gray with the horror of it all, but she did not break down nor whimper. Jean was built of stern stuff, and the men watched her with a mixture of pity and admiration. Suddenly a figure darkened the door and they turned to see Mrs. Wesson dressed in her slouch hat and worn duster. She went straight to Jean and put her arm around the girl’s waist.

“Honey, I came just as quick as I heard.”

Jean smiled wanly, and looked back at the doctor.

“—— that maverick law!” muttered Bunch Thornton.

Brick raised his eyes and stared at him. For the first time it came to Brick that folks would think he had done it. He had found the tied calf, the branding fire. Doc Meyers had spoken of the wound being made by a .41 caliber bullet. Brick carried a .41. He remembered the queer look that Barnhardt had given him.

Brick switched his gaze to Jean, and found her looking straight at him, a look full of sorrow. Then she turned away.

Brick's soul cried out against these suspicions, but his lips tightened. It was damnable for any one to think he had done this, but how could he prove his innocence? Right now, his pistol was filled with empty .41 cartridges and the gun was foul with burned powder.

Brick glanced at Lafe Freeman. Lafe's lips were shut tight, but his glance seemed to be a warning.

"They all think I done it," thought Brick. His eyes swept the group near the bed, and he turned and walked outside to his horse, where he mounted and rode swiftly away. His mind was reaching out for a possible proof that he did not shoot Martin, but there was nothing.

He rode swiftly to where he had intercepted Martin's horse, and dismounted. In the dust of the road he found a footprint, partly obliterated by a wagon wheel. He searched up and down the road. Then he found another track, like the track of a monster bird. He studied this.

"Five toed bird!" he grunted. "Five toed ——! That's the print of a man's hand!"

Just the one print. Beyond it was a mark where something had been dragged through the dust. On the yellowed grass, near the edge of the road he found a spatter of blood. It was almost dried in the sun, but was undeniably fresh blood.

Brick ranged like a hunting dog. Suddenly he found another track—the track of a horse. He examined it closely. The horse had crossed the road, headed toward the ravine. Across the road was the ruins of an old log and dobie cabin, almost concealed by brush.

Between the road and the ruin he found two more prints from the same horse. Brick went back to his horse. There was nothing unusual about finding the tracks of a shod horse, but Brick had never known a horse to be shod in this manner. The tracks showed that the toe-calks had been left entirely off the shoes, but the heel-calks were very pronounced.

Bunt Blair hailed him from the saloon porch, as he came into town, asking of news from Martin. Bunt looked queerly at Brick, as Brick was unable to

tell him anything further than that the doctor was probing for the bullet.

Brick found "Harp" Harris humped up in the doorway of the office, solemn of face and dejected of figure, trying to coax a tune from his jew's-harp. Nature had violated a precedent when she fashioned Harp Harris. In physique, he was a perfect line from his bat-ears to his ankles. An artist or sculptor might have used Harp for the model of "The Lost Chord," as he distorted his long, sad face over the efforts of breathing a tune into the most humble of instruments. Harp was foreman of the Nine Bar Nine outfit, and entirely capable, which spoke well of his lack of artistic temperament.

He squinted up at Brick, but continued to "hung-g-g-g, hong-g" for several seconds. He wiped the back of his hand across his mouth and got to his feet. The office door was shut.

"Where's Silent?" asked Brick.

Harp jerked his head toward the doorway. "Somebody kicked the door shut, when I started to play."

The door opened and Silent looked out. "Martin dead?" he asked quickly.

"No." Brick shook his head. "Hurt bad, though. Doc thinks he was shot with a .41. Who shoots a .41, Silent?"

"You do," Silent grinned, but sobered up as Brick nodded.

"Gee cripes, Brick, I didn't mean——"

"Looks kinda like I done it," admitted Brick bitterly.

"He had it comin' then," stated Harp. "Some folks do take goshawful chances in this here earthly sphere. Got time to look at somethin' I brought in?"

Brick opened his mouth to question Harp, but he of the slabsides was already walking away.

"Foller him," advised Silent. "I'll sneak along behind. If I can ever get him far enough away from town I'm goin' to massacre him. The danged porkypine's settin' on the doorstep for an hour, hongin' —— out of 'After the Ball'."

"Shucks," drawled Harp. "You don't know 'Marchin' Through Georgie' from 'Take Back Your Gold,' you don't."

"I heard yuh play 'em," grunted Silent, "but that wasn't all yuh played."

“I never played either of them,” grinned Harp.

Silent rumbled threats of violence, as they followed Harp to a little corral, which had been built out from Cale Wesson’s barn. In the corral stood a red cow, while at her flank, huddling for protection, stood a spotted calf.

The cow bore the brand of the Lazy H, while the little calf had been branded with a crude Weeping Tree. Brick studied the two brands silently.

“I picked ’em up when I was comin’ to town,” stated Harp.

“It ain’t none of my business, but I sure do hate to see folks slappin’ a hot, runnin’-iron on a poor li’l calf thataway. Been done a couple of days ago, I reckon.”

“Bill Voorhies seen it?” asked Brick.

“No. He’ll be sore, I bet.”

“You heard about Scott Martin, didn’t yuh, Harp?”

“Only what Silent told me; and me and you both know Silent too well to _____”

Ordinarily, Brick would have enjoyed the word battles between Silent and Harp, and would have been willing to explain it to Harp, but just now he seemed tired of it all, and wordless. He was not even interested in this new evidence against Martin.

Brick turned and walked back toward the street. Silent and Harp passed a look of mutual understanding, and followed him to the street, just as Lafe Freeman drove in with his buckboard, followed by Bunch Thornton and Lynn Barnhardt. Thornton and Barnhardt went into the saloon, but Freeman came over to Brick.

“Doc found the bullet,” said Lafe.

“Forty-one?” asked Brick, and Lafe nodded.

“Wasn’t hardly battered none. Doc’s afraid it went so close to the spine that it might paralyze him. Martin ain’t conscious yet.”

Harp and Silent went slowly across the street to the saloon, and Brick watched them go inside before he turned to Lafe.

“Lafe, I never shot Scott Martin.”

Lafe drew out a plug of tobacco and set his teeth into the edge of it.

“Zasso?” He rolled the tobacco into his cheek and squinted at Brick.

“Did you think I did, Lafe?”

“——!” Lafe spat contemptuously. “In the back?” Lafe shook his head, and added, “But I ain’t everybody, Brick.”

Brick nodded his head. Lafe had said “everybody,” which included Jean Martin. Silent and Harp had asked no questions. If Brick had shot Scott Martin, according to their ideas, Scott Martin deserved the shot. Brick turned to Lafe.

“Want to show yuh somethin’, Lafe.”

They walked back to the little corral, where Lafe looked at the brands. The old cattleman shook his head.

“Was Scott Martin loco, Brick?”

“No.”

They walked back to the street, where Lafe turned and put his hand on Brick’s shoulder.

“Brick, I know you didn’t shoot Scott Martin. I could swear it by —— and high-water, but——ain’t you got no alibi a-tall?”

“Martin would know who shot him, Lafe?”

“Not unless he’s got eyes in the back of his head, which he ain’t.”

“Go and find ’em, son. I told Doc Meyers to get hold of Doc Winchell, down at Silverton. Mebbe the two of ’em can fix him up.”

Lafe went back to his buckboard and drove out of town, while Brick went back to the office and sat down to think calmly.

Was Scott Martin branding that calf when he was shot? If he wasn’t, what was he doing that far off the road? Did he maverick that Lazy H calf, which Harp brought in? Would any man—any sane man, brand a sucking-calf, whose ownership was unquestioned? Who had reasons for killing Martin?

The questions seethed through Brick’s mind, but he could grasp no solutions to any of them. He wrote out the questions, but was unable to think calmly, because the thought, “Everybody thinks you shot him,” kept hammering his brain. He stared at the ages-old reward notices, with which most of the walls had been papered, but his thoughts were far from the “Wanted” ones, whose faces stared down at him.

Silent came in softly and threw his hat on the table.

“Jeff Seldon’s up in the Dollar Down, faunchin’ to beat ——,” he announced.

“What’s eatin’ him?” asked Brick absently.

“Says he found two of his Hereford calves branded with the Weepin’ Tree. He says they was mavericks, which he was intendin’ to slap brands onto right away. Seems that Frank Fellows found ’em up near the head of Piney creek. Frank brings ’em in and throws ’em into a bunch near the Star Dot, and today they finds ’em both mavericked.

“Seldon’s the only one around here that owns any Herefords. He rides into town, mad as ——, and opines he’s goin’ out to the Weepin’ Tree and jump on Martin all spraddled out. Buntz tells him what happened to Scott Martin, and now Seldon’s sore at you. He was goin’ to claw Martin to a fare-thee-well, and then he gets sore at you for—for——”

“For shootin’ Martin,” prompted Brick.

“He didn’t just say that, Brick. He said this country was tryin’ to reform too —— fast.”

“Well,” drawled Brick, “well, maybe he’s right, at that.”

Silent nodded over the manufacture of a cigaret, while Brick watched him closely.

“Did you know I shot Scott Martin?” asked Brick.

Silent scratched a match and squinted at Brick through the smoke of his cigaret.

“Uh-huh. Sure, I knowed it, Brick.” Silent pinched out the glowing match and grinned at Brick. “Now that we’ve both lied—what next?”

“Prove it?” queried Silent, when Brick did not answer.

“No.” Brick shook his head. “Provin’ that I didn’t do it is goin’ to take time. I reckon it’s up to us to prove who did do it, Silent.”

Silent walked to the door and looked up the street.

“Here comes your friend Seldon,” he remarked.

Seldon lost no time in idle gossip. He brushed past Silent and walked over to Brick.

“Well, yore maverick law kinda started somethin’, didn’t it?” Seldon’s tone of voice was like pouring vinegar into a raw sore. Brick leaned on the

edge of his desk and tried to control his temper. He knew there was no use in arguing with Seldon.

“I’ll fight m’ own battles,” declared Seldon. “If Scott Martin wants to steal all my cattle it’s none of your business, *sabe*? I’ll settle with the thief in my own way.” Still Brick made no move; made no attempt to reply. This emboldened Seldon. His overbearing temper had found a target, and his little round eyes snapped. “I’ve handled a lot of rustlers,” said Seldon, and made no attempt to lower his voice, “I sure have, but I never shot one in the _____”

He had meant to say “back.” Brick’s right hand shot out and the fingers gripped into Seldon’s collar, cutting off the final word. Seldon clawed for his gun, but Brick’s other arm circled his body, tearing his hand away from the pistol butt and dropping the gun to the floor.

Brick picked Seldon up in his arms, carried him to the door, with Seldon screaming curses and kicking vainly at Brick’s shins. Brick grinned at Silent and started across the street. Seldon’s screams had attracted the attention of Marlin City, and Brick and his burden had spectators as they crossed the street to the Frenchman Le Blanc’s blacksmith shop.

Le Blanc looked up from his work-bench as Brick came in. Several men crowded in behind them, stopping at the doorway of the shop.

Seldon’s conversation was incomprehensible, but the profanity was very clear and emphatic. Brick carried him straight to Le Blanc’s slack-tub, a half-barrel tub filled with very dirty water, in which the blacksmith cooled hot metal. It was not a large tub, but Seldon was not a large man. The immersion followed, while the audience stood in silent enjoyment.

Five times did Brick immerse Seldon—immerse every bit of him, except his feet, and the fifth time Seldon spat out the dirty water without profanity. The water was very dirty, and the bottom of the tub was an inch deep with iron flakes, filings and such sediment as a blacksmith shop is heir to, and which did not serve to increase Seldon’s personal appearance.

But Seldon did not curse any more. He was very meek as he sat on the floor beside the tub and tried to sneeze the water out of his nose.

“Ba gar, she’s jus’ lak’ dip in hot iron!” grunted Le Blanc. “Get her hot lak’ —— and den dip queek and she’s mebbe spoil de temper. Ho, ho, ho!”

Seldon shot Le Blanc a malevolent glance, but did not speak. He reminded Brick of a rattler, pinned down and exhausted from striking at nothing.

Seldon got slowly to his feet and tottered out of the shop, a dripping scarecrow. Without a word he went straight to the hitch-rack, where the horses snorted their indignation of such an apparition, mounted his horse and rode out of town.

“Me—I’m glad for dat,” grinned Le Blanc. “I’m no la’k dat sonn of a gonn.”

“First bath he’s had since the Custer battle,” grinned Harp. “It sure does change a man.”

No one asked Brick why he had ducked Seldon in the dirty water. It was none of their business, and men in the cattle country are prone to mind their own business; that is, if they desire peace and comfort. The audience drifted back to their own business, leaving Brick and Le Blanc standing in the doorway of the shop.

“You’ve shod a lot of horses, ain’t yuh, Le Blanc?” asked Brick.

“You bet,” nodded Le Blanc. “Shoe plenty cayuse. I’m wan good horseshoe—me.”

The Frenchman swelled with self admiration. He had boasted of his methods of building a proper horseshoe a thousand times, especially when his belt was tightened around several drinks of straight gin, his favorite liquor.

“What’s the idea of leavin’ the toe-calk off a shoe?”

Le Blanc wiped his mustache with a dirty hand.

“Leave de toe-calk h’off, Breek? Um-m-m—who do dat?”

“I dunno; I just wondered why anybody would.”

Le Blanc considered it a while.

“Sometame de cayuse she’s cut herself wit’ toe-calk, Breek. When she’s lope her hin’ feet——” Le Blanc nodded violently. “I shoe cayuse lak’ dat one time.”

“Whose cayuse?”

“Four years ago, Breek. I’m de blacksmith’ in Nort’ Dakota. One blacksmith’ she’s shoe dis cayuse and de cayuse she’s cut her front legs. De man she’s come to me and I tak’ off dem shoe. De man she’s say to me for leave off de toe-calk. I’m remembair dees pony. She’s jus’ broke. She’s keek —— out of me.”

“Did it cure her of interferin’?” asked Brick.

“I never see no more. I’m t’ink she’s cure. Le Blanc wan good horse-shoe.”

“Who shoes their own horses around here?”

“Who try to shoe?” queried Le Blanc, meaningly. “Well, de Nine Bar Nine, de Lazy H, de—mos’ h’everybody, Breek, dey try to shoe cayuse.”

“The Star Dot?” asked Brick.

“Seldon nevair buy de horse-shoe from Le Blanc. Mebbe she’s buy from Wesson.”

Brick nodded and walked back to the office. There did not seem to be a thing to work on. Everything led into a blind corner.

Lafe Freeman lost no time in going to Silverton after Doctor Winchell, and had him in Marlin City the next morning in time to send him out to the Weeping Tree with Doctor Meyers. Brick watched them drive away, and wondered if Doctor Winchell would be of any use. Winchell had added knowledge of human ills to his practise as veterinary. Doctor Meyers was also called in animal cases. Ordinarily, Brick would have laughed over the fact that two veterinaries were going to consult over a wounded human being, but humor seemed apart from Brick just now. Silent came to Brick and spoke disgustedly—

“They’re talkin’ about askin’ you to resign, Brick.”

“Who?”

“I dunno. I heard it mentioned in the Dollar Down.”

Brick turned away and walked slowly up the street. He suddenly made up his mind to ride out to the Weeping Tree and see Jean. At least he could tell her he didn’t fire that shot. He saddled his horse and rode away from town. Within a mile of the ranch-house he met Mrs. Wesson. She drew up her team and looked up at him.

“I—I was just goin’ out there,” stammered Brick, “goin’ out to see if there’s anythin’ I can do.”

“I don’t think there is, Brick.” Mrs. Wesson shook her head. “Them two clumsy doctors are out there and if they can’t kill him, he’s a wonder. They didn’t tell me to vamoose—not in so many words, but I don’t have to git hit with a boulder. I’m goin’ home after some clean clothes.”

“Is he—has he said anythin’?”

“Not a word. Doc Meyers thought he was conscious, but Doc Meyers knows a ——— sight more about ringbone and spavin than he does about human ills. You know that Scott Martin was almost deaf anyway, and I reckon this bullet ruins what’s left. He couldn’t hear the crack o’ doom. And here he comes out there with Doctor Winchell. Where’d that horse doctor get any right to prognosticate on the human form, I’d admire to know?”

“How’s Jean?”

“Well, she ain’t singin’, if that’s what yuh mean. I asked her if she didn’t think it was funny that you hadn’t been out, and she said she didn’t think so under the circumstances. She thinks you shot him, I reckon.”

“Don’t you, Mrs. Wesson?”

“Good——!” Mrs. Wesson’s eyes bored into Brick’s face.

“Brick Davidson, I’m plumb ashamed of yuh! Don’tcha think I’ve got any—giddap!”

The ponies sprang forward and the buckboard rattled off down the road, with Mrs. Wesson humped up in the seat, while Brick sat on his horse beside the road watching her disappear. Then the lines of his face relaxed and he patted his horse’s shoulder.

“Button, we’ll show ’em yet. Didja hear what she said? She was mad at me, ’cause I even thought she believed it. Lafe knows I didn’t, and Silent and Harp don’t believe it, and now Mrs. Wesson don’t. Button, we ain’t in the majority, not by a ——— sight, but we’ve got a fightin’ nest-egg. Now watch our dust.”

Brick headed into the hills. He had no desire to go to Weeping Tree—today. Mrs. Wesson’s indignant reply to his question had warmed his whole being. It seemed to clear his mind. He had thought of what Silent had told him, and had almost decided to resign his office, but this meeting with Mrs. Wesson had been like handing a loaded gun to a cornered fugitive.

Brick gave no heed to his direction, and suddenly pulled up his horse at the top of a butte and looked down upon the rambling ranch-house and sprawling corrals of the Star Dot. A spirit of daredevilry came to Brick. For the first time since he had found Scott Martin lying shot, he became normal. As far as he could see there was no one at the Star Dot. Several head of cattle browsed around inside one of the corrals, while in another were several horses.

Brick shook up his horse and rode straight for the house. He rode past the front porch and around the corner, where he found Jeff Seldon, tilted back in a chair against the side of the building. Seldon had changed clothes and had evidently neglected to wear his belt and gun.

Seldon stared at Brick, as though Brick were a ghost. His thin face seemed to grow thinner and the parchment-colored skin seemed fairly to crack. For the space of ten seconds neither of them spoke; then Seldon exploded a curse and swung his chair away from the wall.

“Nice afternoon,” observed Brick seriously.

“Nice ——!” choked Seldon. His hand dropped to his hip, but there was nothing there except sagging overalls.

He swallowed with difficulty.

“You spoke about two Herefords what had been mavericked,” remarked Brick.

“You’re —— right I did! Don’tcha believe me?”

“Like to see ’em, Seldon, if it ain’t too much trouble.” Seldon got to his feet and led the way to the corral, with Brick riding behind him. There were several head of cattle in the corral, all Herefords. Seldon pointed out the two mavericks, or which had been mavericks until the Weeping Tree had been run on their right shoulder. They were nearly full-blooded Herefords.

“You could swear that they belonged to you, Seldon?”

“Swear? ’Course I could swear. Any jury in the country would give ’em to me. The Weepin’ Tree ain’t got no Herefords.”

“They were mavericks,” observed Brick. “Must be nearly yearlin’s.”

“Uh-huh. Fellows found ’em way back in the breaks of Piney Crick. They was mavericks, but they’re mine, y’betcha. Danged nice pair of

animals.”

“If you’ll open the gate, I’ll cut ’em out,” offered Brick.

“Cut ’em out?” Seldon was plainly surprized. “What for—cut ’em out?”

“Take ’em back with me. You swear that they belong to you, Seldon, but your brand ain’t on ’em. You swear that the Weepin’ Tree ain’t never had no Herefords. I reckon we’ll turn ’em over to the association and let ’em decide whether either outfit owns ’em.”

Seldon leaned against the corral fence and grew incoherent. Would he stand for anything like this? Not by several adjective sights. He’d see Brick Davidson skating in a mythical region, where heat is said to be excessive, first. In fact, Seldon exhausted his extensive vocabulary of “nots and won’ts,” while Brick grinned in silent wonder that any human being could think of so many curses and have them all fit the situation.

Seldon started for the house, but Brick swung his horse across Seldon’s path and asked Seldon where he was going. Seldon informed him that he was going to town, but first he must get his coat. Brick grinned and shook his head.

“From that window up there you could salivate me with lead, old-timer. No, I can’t let yuh go into the house—not today.”

“—— yuh, I don’t want to go into the house!” Seldon’s voice was high-pitched in spots, like a youngster, whose voice is changing. “My coat is right there around the corner from the kitchen door.”

Brick glanced at the kitchen door. He could watch Seldon get the coat, but what would prevent Seldon from jumping around out of sight? Brick shook his head.

“You stay here, old-timer, and I’ll get the coat for yuh.” Brick got off his horse and walked to the corner, keeping an eye on Seldon. Just around the corner, leaning against the wall, was a Winchester rifle. There was no coat.

Seldon said nothing, when Brick came back, but his eyes narrowed. He was caught with the goods, and he knew better than to try to lie out of it.

“You’ve got a good tailor,” said Brick, examining the rifle, “but I reckon we’ll kinda spoil the fit.”

He levered all the cartridges out of the magazine and then motioned for Seldon to go back to the corral. Brick took the rifle in both hands and swung it across the top of a post. After three swings there was neither stock,

magazine lever nor mechanism left. Brick threw it aside and motioned for Seldon to open the gate.

It was but a moment's work for Brick to send the two yearlings out of the gate. Seldon was beyond words. His skinny jaws were set, but he did not look at Brick as he rode past, and followed the two maverick animals. Brick headed them straight toward Marlin City. Where the road swung around a high point, about half a mile from the Star Dot, he looked back, and saw two horsemen riding in from another direction.

Brick let the yearlings drift, while he watched the ranch-house. Few loose animals will follow a road, unless carefully herded, and these two Herefords were no exception. They drifted on for a while and stopped; looked back, and swung back into the hills.

Brick's patience was rewarded. In about fifteen minutes three riders left the ranch and swung up the road toward Brick. One of them was evidently Jeff Seldon, as his pinto was easily distinguished at that distance.

Brick rode off the grade and down into a tangle of mesquite, where he was effectually screened from the road. As they rode swiftly past him, he recognized Seldon and Pete Kane; but the third man was a stranger. As soon as they were out of sight, Brick rode back to the grade and went slowly toward town. He had no idea why the three riders were in such a hurry. Perhaps they figured on overtaking him and getting the yearlings. Brick did not make any search for the Herefords, knowing that they now headed into the hills. At any rate, they were of no value to him. They had been an excuse for a visit to Jeff Seldon, and the visit had turned out very well.

Brick did not hurry back to Marlin City. He rode slowly to where the road led off to the Weeping Tree, scanning the road carefully for a sign of the missing toe-calks, but there were none. Seldon, Kane and the stranger had ridden two shod horses and one barefooted one. On the saddled ones the toe and heel calks were plainly visible.

Brick wanted to go to the Weeping Tree, but after due deliberation went on to town. Protesting his innocence would not do him any good. In fact Brick did not want to protest his innocence—he wanted to prove it by finding the guilty parties.

As he rode into town he noticed that there was an unusually large number of saddle-horses at the hitch-rack beside the Dollar Down; but this was Saturday, which would account for that. Brick had intended to go to the office, but when he saw Seldon's pinto at the hitch-rack he changed his mind and went to the saloon.

Pete Kane and the stranger were just coming to the door, as Brick stepped inside. As Brick stepped aside to let them pass, Kane spoke to the stranger. The man turned his head toward Kane, and then appeared to stumble into Brick; his toe striking Brick's ankle. The man had stumbled on a smooth floor and had gone entirely out of his way to collide with Brick.

For a moment they were face to face, but the stranger's eyes held no hint of apology, rather he appeared to blame Brick. Brick made as though to pass on into the saloon, but his right foot swung sidewise, catching around the stranger's ankle, throwing him completely off his balance and he crashed to the floor.

Brick had barely stopped in his stride and now he faced Kane, who had stopped just inside the door, and the fallen man, who was sitting on the floor staring at Brick. The man was taller than Brick, but of about the same weight. His features and complexion stamped him as a Spaniard or a Mexican. He wore a small, well-trimmed mustache on his short upper lip. His nose was prominent and his close-set eyes were very black. He was a trifle overdressed; his range clothes extreme in color and cut. A businesslike gun reposed in a stamped leather holster on his hip, and his heavy, wide belt was well filled with cartridges.

He glanced around at the crowd and got slowly to his feet. Kane was almost behind him as he got up, but stepped quickly out of line with Brick, who was standing easily, feet braced and hand swung idly beside the holster of his gun. He appeared to hold little animosity toward Brick, and his mouth twisted into a semblance of a grin. Then he turned and went out.

"Quitter!" grunted a voice in the group.

Brick turned and looked at them. His eyes singled out Seldon.

"Quitter?" queried Brick wonderingly.

"Started it, didn't he?" asked Seldon quickly. Brick grinned.

"'Pears to me like he did, Seldon. Who is he?" asked Brick.

“Name’s Smith—Jack Smith,” replied Seldon. “Horse buyer for the English army.”

Brick considered this, and turned back to the door. Lafe Freeman and Bunch Thornton came up to Brick and asked him to step outside. They were both very serious.

“Brick, I’m plumb scared that they’re goin’ to ask yuh to resign,” stated Lafe. “Lot of these snake-hunters think you shot Scott Martin, and nothin’ will stop ’em thinkin’ that—except findin’ the guilty ones.”

“I’m for yuh, Brick,” said Bunch. “I’ll make yuh foreman of my outfit, if yuh need a job.”

“He won’t.” Lafe Freeman spoke with conviction. “If Brick needs a job, his old place on the Nine Bar Nine is still waitin’ for him.”

“But I ain’t needin’ a job,” grinned Brick. “I’m goin’ to keep right on bein’ sheriff.”

“Bill Voorhies is chairman of the board of county commissioners, and he’s goin’ to take up the matter,” said Lafe. “Bill kinda runs that bunch of horse-thieves, and Bill’s down on you, Brick. I’ll do all I can, but——”

“Bill wasn’t in favor of me when Bunty resigned,” remarked Brick.

“Sure, sure,” nodded Thornton, “and Bill’s the worst maverick in the whole county, Brick. He can’t afford to have yuh spoilin’ his game, can he?”

“When all is said and done, why should I resign? I haven’t done a danged thing that was wrong.”

“Old Seldon said yuh came out to his place and herded him around with a gun and turned his stock into the hills and smashed his rifle. Said yuh run off them two mavericked yearlin’s, likely to square yourself with Martin in case he gets well. Voorhies was there and heard it all. He said there’s due to be a change in your office real soon.”

“Heard anything from Martin?” asked Brick.

“Paralyzed, so Doc Meyers says,” replied Lafe. “Can’t talk nor hear nor move. Bullet kinda crimped his spine, I reckon.”

“Say, who owns the Weepin’ Tree ranch?” asked Brick suddenly.

“Seldon,” replied Thornton. “He’s got a deed from Zell Mohr. He was talkin’ about it today. It joins the Star Dot and there’s a couple of good springs, which flows well all Summer. Kinda funny that none of us picked up that ranch on account of them springs. Betcha Seldon never paid Zell nowhere near what the place was worth.”

“It was worth nothin’ to Zell,” grinned Lafe.

“So Mohr sold the Weepin’ Tree to Seldon before he went to the pen, eh?” queried Brick. “Where does Martin come in on this deal? He’s got a paper that Zell gave him, which shows that Martin can live as long as he wants to on that ranch.”

“I dunno.” Thornton shook his head. “Seldon’s got the deed to it, that’s all I know.”

Brick smiled and turned to Lafe.

“I’m goin’ to keep on bein’ sheriff, Lafe. Ne’mind them commissioners.”

Brick went back to his office and sat down. From a locked drawer he took a legal-looking document and perused it thoroughly. Suddenly he stopped and stared at the wall. Before him came the face of the man he had knocked down in the saloon—the full lips, hooked nose, waxed mustache. Where had he seen that face before?

He had not given the man’s face a close study as he sat on the saloon floor, but something seemed to tell him that he had seen this face before.

“Jack Smith,” wondered Brick aloud. “That’s a —— of a name for a face like that. Spaniard, with an American name, buying horses for England.”

Brick wondered why Seldon had said “quitter,” when Smith had left the saloon. Was there a frame-up to start trouble with him? Silent came in excitedly.

“Whatcha think, Brick? Barney O’Mera just came in from out on Piney crick, and he says that somebody has brought in a herd of sheep.”

“Sheep?” Brick stared at Silent, who nodded emphatically. Sheep were the bugbear that haunted the dreams of cattlemen. Sun-Dog had always been free of sheep, but they knew that their coming was inevitable, knew it was only a question of time until the advance guards of that great, gray army would swoop down upon them and drive the cattlemen off the ranges. The cattle interests could not afford to buy up the great amount of range needed for their herds. The coming of sheep meant war. Legally the sheep

had the same rights as the cattle, but the cattlemen figured that possession was nine points in the law and that a six-shooter was the best argument.

A sheep war would mean a lot of work for the sheriff; that is, if the sheriff upheld the rights of the sheepmen.

“Did Barney say how many sheep?” asked Brick.

“Not a big bunch. Few hundred, I reckon; but it ain’t numbers—it’s sheep!”

“I reckon that’s right,” nodded Brick. “Numbers don’t count.”

The next morning Brick decided to go to the Weeping Tree. He had an idea, and when Brick got an idea he gave that idea every chance in the world to bear fruit. The fact that Scott Martin could not move, hear, nor talk did not affect this idea. Silent grumbled at being left at the office.

“Might’s well be a chambermaid in a livery stable,” he wailed.

“Anybody’d think yuh was runnin’ a grocery store or saloon, the way yuh act about this danged old office. Yuh even tore down them pictures that Buntz had on the wall, and there ain’t nothin’ but them old reward notices to look at. Danged old walls look like they had small-pox.”

“Ne’mind me,” he grunted, when Brick sought to pacify him. “I’ll git along. Mebbe I’ll git some ol’ lady to learn me how to knit. Jimminy gosh, I wish somebody’d git drunk and shoot up the town. Think I’ll run for Sunday school principal next election. Hurrah for crime and disorder!” He kicked the door shut behind Brick, who laughed and went to saddle his horse.

Mrs. Wesson was hanging up a washing when Brick rode up to the Weeping Tree ranch-house. Jean stood on the steps and watched Brick stop beside Mrs. Wesson, but turned and went inside. Brick followed her with his eyes until the door closed and then turned back to Mrs. Wesson.

“What yuh got on your mind, Brick?” mumbled Mrs. Wesson, without removing the clothes-pin from between her teeth.

“How’s Martin?”

“I dunno, Brickie,” Mrs. Wesson removed the clothes-pin and looked back at the door. “He ain’t sufferin’ none, I reckon; but he can’t hear nor

talk. Just lays there and looks at the ceilin'. Mebby he knows what's goin' on—I dunno."

"Can I go in and see him?"

"Why, I reckon yuh can—sure."

Brick followed Mrs. Wesson inside. Jean was standing near the head of the bed, looking curiously at Brick, who walked up beside her and looked down at Martin. The injured man looked at Brick and a ghost of a smile seemed to flash across his eyes.

"He don't seem to suffer none," said Mrs. Wesson, in a half whisper, as though forgetting that Martin was stone-deaf. Jean turned away.

"If he could only talk," said Mrs. Wesson. "Them danged horse-doctors _____"

Brick nodded and took a sheet of paper and a pencil from his pocket. He wrote on the paper and then held it up for Scott Martin to read: "Can you read this? Shut your eyes once for 'no' and twice for 'yes'."

Martin blinked twice.

Brick turned and explained it to Mrs. Wesson and Jean. "Well, bless my soul!" exclaimed Mrs. Wesson. "Brick Davidson, you're too smart to be a sheriff. Ain't that some idea? We tried that writin' idea, but there wasn't no use of it, bein' as he couldn't make any answer; but nobody ever thought about a wink message."

Brick grinned and wrote again.

"Do you know who shot you?"

Martin blinked just once—"No."

Brick had banked on Martin being able to tell him who did it, and his hand trembled over the next question. Mrs. Wesson and Jean were leaning forward, watching closely. Brick studied Martin's face for a moment and then turned to Jean and Mrs. Wesson.

"I ain't got no right to ask him this question, but I want to find out what he knows." Brick wrote the question—

"Were you branding a calf when you got shot?"

Martin stared at the question, but did not respond. Brick wrote—

"Do you know what I mean?"

Martin blinked once.

Brick turned to Jean.

“Your dad had a paper which Zell Mohr gave him, telling your dad that he could have the use of the Weepin’ Tree ranch as long as he wanted it, didn’t he?”

“Yes. Zell Mohr gave it to dad after we came here. He said it was legal. Dad always carried it with him, because he felt it was safer than if he hid it away.”

“Do yuh know where it is?”

Jean hurried away to make a search, while Brick turned back to Martin and wrote:

“Zell Mohr gave you a paper, which showed you had the right to use this ranch. Did you have it with you when you were shot?”

Martin stared at the question for a moment, but blinked twice. “It isn’t in any of his pockets,” said Jean. “Perhaps it fell out.”

“Uh-huh, I reckon it did,” smiled Brick. He turned to Martin and patted him on the shoulder. A smile seemed to come to Martin’s eyes, and Brick turned away.

“Keep this dark, will yuh?” asked Brick of Mrs. Wesson. “You folks can talk to him, but don’t let anybody——”

Brick had turned toward the open door and saw Kane and the one called Jack Smith standing in the doorway. Kane nodded and spoke to Jean.

“How’s the sick man?” he asked.

“About the same, Mr. Kane,” said Jean.

“Shucks, that’s too bad.” Kane seemed downhearted and his voice was sympathetic. Smith tried to appear indifferent to Brick’s presence by half-turning his back. Brick watched the two men closely. It is hard to ignore a person under these circumstances, but Smith and Kane succeeded admirably. Brick looked back at Martin, who was slightly propped up on his pillow, and waved good-by. He turned to Jean.

“I reckon I’ll be driftin’, folks. Got a sheep deal to look into.”

Jean made no move to follow him, appearing indifferent as to whether he stayed or went. Mrs. Wesson watched Brick from the doorway, with a smile, and then shook her head as if to say, “I’m with you, Brick.”

Brick rode straight into the Piney Creek hills, heading for the sheep-camp; but he was not thinking about sheep. The face of Jack Smith troubled him. Was it just a chance resemblance to some one he had known?

Brick had been born and raised in the range country, where there is small chance of meeting a man without at least a short acquaintance. Brick couldn't remember any one who looked like Jack Smith. Very few Mexican or Spanish cowpunchers ever get to the Northern ranges, and Brick knew he was not confusing Smith's likeness with any other dark-skinned cowboy he had known. Still, Smith's face was familiar.

Brick was satisfied that Scott Martin was not branding the calf when he was shot. He felt sure that Martin had been shot from his horse while traveling on the road, and that the would-be murderers had framed the rest of the evidence. It looked as though their idea had been to fasten the crime to Brick, but Brick felt that there was more to it than merely trying to get rid of the sheriff. They had, no doubt, believed that Martin was dead, or they would have finished the job.

"Somebody," muttered Brick aloud, "somebody is goin' to lose a lot of sleep pretty soon, and it ain't goin' to be me." He had no trouble in finding the sheep-camp. The herders had moved into a small cabin at the mouth of a small cañon. As Brick rode up to the door of the cabin, the two herders came out.

Brick noted that there were no sheepdogs in evidence, which proved that it was not a well-organized outfit. The men were a hard-looking pair; unshaven and unwashed. Brick mentally classed them as "range-thugs," rather than regular shepherders. There was neither surprise nor friendliness in their faces.

"Whatcha want?" growled the larger of the two.

"Whatcha got?" grinned Brick.

The big man growled something deep in his throat. Brick glanced around.

"Sheriff?" asked the smaller man. Brick nodded.

"Uh-huh. Thought I'd see yuh before the cattlemen did."

"Whatcha want?" growled the big man again.

“How many sheep yuh got?” asked Brick.

“Couple hundred.”

“Won’t take yuh long to round ’em up and drift back where yuh came from, will it?”

“We’ve got a right here,” whined the small man. “You’re the sheriff and you’ve got to see that we git a square deal.”

Brick grinned.

“Who told yuh that?”

The two men exchanged glances. The big one shrugged his shoulders and spat copiously.

“Anybody knows that, sheriff.”

The small one began to tirade against the injustice of the range country, but Brick was not listening. Hanging on a nail, driven into one of the corner logs of the cabin, hung two horseshoes—two worn horseshoes, made without toe-calks. The smaller man broke off his discourse and followed Brick’s gaze.

“Herd sheep on horse-back?” asked Brick.

“Naw.”

“Who left the horseshoes?”

Neither man spoke for a moment and then the big one said, “We dunno.”

Brick rode in closer and examined the shoes. To all appearances one of the shoes had come loose from the hoof, and the other had evidently been pulled off.

“Yuh don’t know who owned the horse that wore them shoes?”

“Nope.” The big man was very positive.

“You two own the sheep?”

“Kinda looks like we do. Anythin’ else you’d like to ask?”

“Uh-huh,” nodded Brick. “Lots of things I’d like to ask, but gettin’ a honest answer is a horse of another color.”

Brick reached over and took the horseshoes.

“Mebbe I can double my luck,” he grinned, and tied them to his saddle. He swung his horse around and headed for the cañon. He knew there was no use trying to find out anything from the sheepherders. He guided his horse into the brush, angling up the side of the cañon. He had traveled about

three hundred yards from the cabin, and had just swung sidewise in his saddle to turn his horse to the left up the hill, when there came a thud, a yank at his belt, and from down the cañon came the whip-like pop of a rifle.

Brick threw himself out of the saddle, pulling his Winchester out from its scabbard as he went down. The brush masked him from the cabin now, and he investigated the effects of the bullet. A neat notch had been cut through the right side of the cantle of his saddle, and the bullet had ripped a chunk of leather from the inner side of his pistol holster. If Brick hadn't thrown himself sidewise at the right time, the bullet would have ripped through his hip or thigh.

Brick considered this and his blue eyes snapped. It did not appear that the shepherders needed his assistance to protect them from the cattlemen. He slipped down the hill and started angling down toward the cabin, when he caught a glimpse of the smaller of the two men coming cautiously up the hill.

The man was taking no chances, but investigating every inch of the brush in front of him. Brick grinned. The man felt sure that he had killed Brick. He darted from one clump of brush to another, cutting the hill above Brick. He passed out of view. Brick watched closely. Finally the man reappeared, but this time he was more cautious.

His head snapped from side to side and he fingered the trigger of his rifle nervously. His nerves were almost gone. He had no idea of Brick's whereabouts. He had shot and missed. Brick grinned. He knew just how the man felt. Suddenly the man's nerve broke and he ran down the hill, jumping from side to side, as though to disconcert any one trying to shoot him. Once he tripped and fell, flinging his rifle far down the cañon, but he did not stop to pick it up. Brick wiped the tear out of his eyes. The man disappeared, still running and limping.

Brick got up and started for the cabin, but taking no chances on another shot from the shepherders. Then he saw the big man. He was across the cañon, nearer the cabin, standing there with a rifle in his hands. He turned toward the cabin, and evidently saw his partner. He turned and hurried down there, while Brick sneaked into the cañon bottom and came in at the

rear of the cabin, which was well masked with brush. The two men were in front of the cabin and their voices were very audible.

“—— ain’t there, I tell yuh! Cut a notch in his saddle, that’s all.”

“You’re a —— of a crack shot,” grumbled the other. “Never miss ’em, says you. Shot with a rest, too, yuh did. Now what will we do?”

“Git to —— out-a here,” whined the other, which Brick recognized as the voice of the small man. “Didn’t he say the sheriff was a shootin’ hound? I missed him, and he’s some’ers in that brush— Do yuh think I want him to line his sights on me?”

“What about the sheep?”

“Aw, —— the sheep! He said he’d likely lose ’em, didn’t he? He can afford to lose ’em.”

“You shot too soon,” argued the big man. “You’ve spoiled the whole —— deal. The sheriff was fallin’ for our game, but you spoiled it all.”

“Him?” There was a world of scorn in the little man’s voice. “That red-headed *hombre* fallin’ for any game? Oh, yeah! Whatcha reckon he took them horseshoes for?”

“Well, what’ll we do?” asked the big man. “Stand here and argue?”

Brick had sneaked to the corner of the cabin and he answered the big man’s question—

“Stand still and hold up your hands!”

The big man dropped his rifle and they both put up their hands.

The small man took a deep breath and expelled it slowly—an audible sigh of relief. His face plainly showed that he would rather be a prisoner than a fugitive.

“Now what do we do?” asked the big man.

“You’re full of questions, ain’t yuh?” grinned Brick. “I reckon I ought to give yuh both a hundred yards runnin’ start and then fan yuh with lead.”

“Yuh won’t though, will yuh?” The small man was still apprehensive.

“No-o-o, I reckon not—not unless yuh deserve it, but yuh never can tell what I think about a man who misses an easy shot like you did.”

Brick’s face was serious, but he knew that the little man was a good shot. He had grown panicky when he found that he had missed, and the distance

was at least three hundred yards.

“Whatcha goin’ to do with us?” asked the big man.

“Well, Mr. Question Mark, I reckon I’ll ask you two jaspers to hoof it to Marlin City ahead of me. It’s only about twelve miles. I’ve got a nice little house to put yuh in and I’ve got her fixed so that nobody can bust in and hurt yuh. Like the idea? No? Tell me what the little game was—the one I didn’t fall for, and I might let yuh go your own way.”

The two men seemed surprized, but their surprize was not genuine. The small man acted as though he thought Brick was joking. Brick smiled and pointed across the hills.

“Twelve miles; forward march!”

The two men turned and plodded ahead of him, while Brick rolled a cigaret and smiled to himself. His idea was working out slowly, but Brick did not mind the slowness. He really held no animosity against the two shepherders for attempting his life. A few days in jail wouldn’t hurt them. Brick did not believe in jailing a man for missing his shot, but he felt that jailing the two shepherders might make a change that would expose something he wished to find out.

It was hard traveling, but neither of the men complained. Brick herded them across the hills and struck the road near the spot where Brick had left the Hereford yearlings. They had followed the road about a mile, when a body of horsemen swung around a curve and rode up to them. The two shepherders crowded to the side of the road and sat down. It was a representative group, Bill Voorhies and Lynn Barnhardt, of the Lazy H, Jeff Seldon, of the Star Dot, Dal Melchior, Barney O’Mera, and “Slim” Hoskins, of the Bar M, and Lafe Freeman, of the Nine Bar Nine. Voorhies reined up beside Brick and looked at the two tired sheepmen.

“Who yuh got there?” he asked.

“Couple of shepherders.” Brick’s voice was just as belligerent as Voorhies’. He was not going to let Voorhies get away with any bluff talk.

“Shepherders, eh?” Jeff Seldon urged his horse forward and looked at the two men. “Puttin’ them in jail for herdin’ sheep?”

“No-o-o,” drawled Brick. “Puttin’ ’em in for makin’ a mistake.”

“How many sheep did they have?” asked Lafe Freeman.

“Said they had two hundred. I don’t reckon they’ve got more than that, Lafe.”

“Mistake?” asked Voorhies.

“Uh-huh,” nodded Brick. “Shot at me and missed.”

“Thought you’d run ’em out all by your lonesome, eh?” sneered Seldon.

“What did they shoot at yuh for, Brick?” asked Lafe.

“For money, I reckon.”

“Money?” Voorhies seemed amused, and his amusement was shared by Seldon, who laughed in a rasping manner.

Brick’s eyes narrowed and the freckles showed like rust splotches on his white skin.

“Hold her, Brick!” cautioned Lafe. “Don’t git sore, old-timer. I’m —— glad yuh arrested the herders. It makes things easier for us. We’ll just razoo that herd of sheep so far they’ll smother to death in wool before they ever find a man to clip ’em.”

“Goin’ to jail ’em for shootin’ at yuh?” asked Seldon. He emphasized “shootin’,” and the tone of the question was sarcastic.

“Was yuh thinkin’ of takin’ ’em away from me?” queried Brick, but Seldon did not answer.

“Brick sure is organized,” observed Lynn Barnhardt, pointing at the two horseshoes tied to Brick’s saddle.

“Whatcha do, Brick—put ’em on your bronc when yuh get ready to start down hill? Betcha he’s got the uphill shoes on his bronc now.”

“Barefooted now, Lynn,” smiled Brick. “Level goin’. Some system, eh?”

“This thing has got to be kind of a —— nuisance,” observed Seldon. “What I figured on was to warn them sheepherders to take their sheep and vamoose. We can’t go chasin’ them sheep all over the country, can we?”

“Reckon I ought to turn ’em loose and kindly ask ’em to take their sheep away?” Brick laughed at Seldon and shook his head. “Nope, your idea is all wrong, Seldon. I’m goin’ to put them two specimens in jail; *sabe?*”

“There’s no need of a warnin’,” said Dal Melchior, “bein’ as there ain’t nobody to warn. It won’t take us long to dispose of two hundred sheep.”

“I know a high cliff,” observed Barney O’Mera meaningly.

“Do yuh think it would be legal for us to kill off them sheep?” asked Seldon seriously.

Brick looked at Seldon and then around at the other men.

“Well, I ain’t no lawyer, Seldon. I swore to uphold the law, yuh understand? If the owner of them sheep will ask me to protect ’em——”

Brick looked at the two tired prisoners, but neither gave any sign that he had heard. Brick shook his head.

“I reckon they’re willin’, gents. I’ll ask the first lawyer I meet for rulin’ on the case. Somehow these two sheep-owners act plumb willin’ to get a divorce from them woolies. I’m goin’ to have a little talk with ’em soon.”

Brick motioned to his two prisoners and they got up. Brick grinned at Seldon, and then rode past the horsemen, following his prisoners, with never a backward look. Then Brick enjoyed his first good laugh since Scott Martin had been shot. The two prisoners looked back at him and exchanged glances of wonderment.

“I ain’t been so tickled since I wore a knit shirt,” chuckled Brick. “Didja notice the look on Jeff Seldon’s face? He’s goin’ out and help kill his own sheep. Ha, ha, ha!”

The prisoners stared at him, and the big one spoke.

“Which one was Seldon, sheriff?”

“Don’t try to be funny,” advised Brick. “You know him —— well.”

“Honest to —— we don’t,” stated the little fellow. “You’re wrong there. I never heard of Seldon.” The man’s voice and actions were convincing. Brick studied the two men and then motioned them to go ahead.

“Will yuh tell me who owns the sheep?” asked Brick.

“No—not unless you’ll believe that we do,” said the big man.

“I don’t,” said Brick. “You fellers ain’t sheepherders nor cowpunchers. I don’t know what you are.”

“I do,” said the little man.

“What?” asked Brick.

“Pair of —— fools!”

“We all have our little failin’s,” said Brick, but he was not thinking of the sheepherder’s reply. He had been sure that Seldon owned the sheep.

Seldon hated the cattle association—hated cow-men, although a cattleman himself. He had told Brick he hoped the sheep would run the cattlemen out of the country. All the cattlemen knew that the sheep must come eventually, but they were determined to fight the issue as long as possible.

“Who else could it be?” wondered Brick. “Seldon hates the association and would do anything to put ’em out of business in Sun-Dog. Seldon hates me. Does he want to mix me up in a cattle and sheep war and get me killed off?”

Brick wondered over these problems, as they went slowly along under the hot sun. The herders had denied knowing Seldon, and Brick felt that they were not lying. There was no question in his mind but that it was sort of a test case on the part of some Sun-Dog rancher. The men had said there were two hundred head of sheep in the band.

“Voorhies hates me, too,” grinned Brick to himself. “Voorhies don’t want anybody that he can’t boss. Voorhies don’t like that maverick idea, a-tall—and Voorhies has sold a lot of beef in the last few months.”

Brick herded his prisoners down the main street of Marlin City; thereby causing much interest. He noticed that Kane and Smith were among those present. Silent stood in the doorway of the office and grinned expansively. At least it meant that he would have company.

“Lo, Sharpshooter,” called Harp Harris.

The smaller of the prisoners turned his head and gave Harp a sharp glance, but did not speak.

“Know him, Harp?” asked Brick.

“Yeah. Used to was up around Fort Benton. Heard he deserted from the cavalry. He sure did clean up their best shots in that country, and they calls him the ‘Sharpshooter’.”

The Sharpshooter did not seem interested in Harp’s description of him.

“Shall I put ’em in the little wickiup?” asked Silent. Brick nodded and the two shepherders filed in ahead of Silent. Kane stepped over to Brick.

“What did yuh do with the sheep?” Kane asked.

Brick elevated his eyebrows at Kane’s question.

“Sheep? Did I mention sheep?”

“Well—uh—they’re—uh—” Kane stammered in his confusion.

“Funny that you thought they was shepherders,” grinned Brick. Kane turned away to hide his confusion, as several men laughed.

“Ba gar, I’m bet dat Breek—” began Le Blanc, but broke off his exclamation to examine the horseshoes tied to Brick’s saddle. Others stepped in to see what the blacksmith had discovered. Kane and Smith turned and walked back to the saloon paying no further attention, but Brick saw Le Blanc look from the horseshoes to the retreating Smith, with a quizzical expression on his face. Brick picked up his reins and led his horse to the stable, while the curious crowd went back across the street.

Silent was jubilant. He did not know why Brick had arrested the two men, nor did he care. It meant something to talk about and a possibility of action. He was overflowing with curiosity, but did not ask any questions of his prisoners. Neither of the prisoners made any comment when Silent generously supplied them with tobacco and cigaret papers. This was Silent’s idea of true hospitality. They were prisoners, it is true, but their coming broke what Silent termed “a terribul lonesome year,” and he was willing to entertain them as much as possible.

Harp separated himself from the crowd as they dispersed, and proceeded to jackknife himself into the doorway, where he began to regale the jail and office with sonorous strains.

“May lightnin’ strike yuh in two places to oncet!” swore Silent disgustedly. “Every time I gets to feelin’ glad, you comes along and sinks my feelin’s. Can’tcha never do nothin’ but hong, hong, hong? My ——, that ain’t music!”

Harp wiped the back of his hand across his lips and looked up at Brick, who had come up to the door. Brick motioned to Silent, who had to step over Harp to get outside.

“Them two are the shepherds,” exclaimed Brick. “I had a wau-wau with them, and when I was pullin’ out they took a shot at me—the short one done the shootin’.”

“You’re lucky to be tellin’ of it,” drawled Harp.

“I noticed the notch in your saddle,” nodded Silent.

“What kind of a rooster is the Sharpshooter, Harp?”

“They runs him out of Dry Lake,” said Harp. “Dead shot with a rifle. Yuh hadn’t ort to put him in jail, Brick. His kind belongs in Boot Hill.”

Brick grinned and told them what happened after the shot was fired, but Silent and Harp could see no humor in Sharpshooter’s predicament when he found that Brick had not been hit. Brick described it with a wealth of humor, but the two cowboys failed to see anything funny about the incident.

“And yuh let him get away with it,” wailed Silent. “Wouldn’t that rasp yuh, Harp? Brick, you ought to have a job as mish’nary to the Pecan Islands. Lettin’ that pop-eyed murderer run circles in plain sight, fall down, git up—all in plain sight. Huh!”

Silent was disgusted. There was nothing savage nor hard-hearted about Silent, but he had his own ideas of visiting judgment on men who shot from ambush.

“Whatcha arrest ’em for?” asked Harp.

“Moral effect,” grinned Brick. “Killin’ ’em would ’a’ put me in bad, don’t yuh know it? They ain’t so much to blame, ’cause they just work with their hands.”

“I know what yuh said,” nodded Harp; “but I’m —— if I know what yuh mean.”

“Don’t ask him,” begged Silent. “Brick’s a danged Injun, with a Greek tongue, when it comes to lettin’ folks in on somethin’ that might interest ’em. I ain’t no deputy—I’m a chambermaid in the jail. Everything Brick says to me sounds like them conundrum things which you’re supposed to guess at.

“I’m all through guessin’. Here he comes skyshootin’ in with a couple of prisoners breakin’ trail for him and a couple of rusty horseshoes tied to his saddle. ‘Moral effect,’ says he. Work with their hands. Huh!”

“Give Brick two shepherds and a couple of horseshoes and he sure can compose some tune,” drawled Harp. “I ain’t no puzzle rustler, but I trails my bets with Brick.”

An hour later the sheep-hunting cattlemen rode back into town, and with them came Doc Meyers in Wesson’s buckboard. Brick stood in the doorway and watched them drive up to the saloon hitch-rack. Silent and Harp were quarreling over a two-handed game of seven-up.

“One man shy,” observed Brick, noticing that Lynn Barnhardt was not with them.

Silent and Harp left their game and came to the door. Lafe Freeman rode away from the rest and came straight to the office, where he dismounted slowly and came up to Brick.

“Scott Martin died about an hour ago,” he stated softly.

“Died?” gasped Brick.

Silent and Harp moved in closely, their faces expressing disbelief.

“Uh-huh,” nodded Lafe sadly, looking back at the men going into the Dollar Down.

“For ——’s sake!” breathed Brick.

Lafe turned and put his hand on Brick’s arm.

“I ain’t advisin’ nothin’, son, but under the circumstances I wish you’d come out to the ranch tonight. Kinda give ’em a chance to cool off, yuh understand.”

Brick looked queerly at Lafe.

“Do I look like a runner?”

“It ain’t that,” faltered Lafe. “Lord knows you ain’t no front-runner, Brick. But look at this right, can’t yuh? You ain’t got no alibi, have yuh?”

“No-o-o. I can’t prove nothin’, Lafe, but I ain’t goin’ to run away. I thought a lot of Scott Martin. Would they try to hang me? None of them cared for Martin. Ain’t they goin’ to give me a chance to prove that I didn’t do it?”

“Human bein’s ain’t no better than wolves, Brick. Will yuh come out to the ranch and let ’em cool off?”

“After I resign,” said Brick slowly. “Voorhies is the boss of the county commissioners, so I reckon he can accept it.”

Brick went into the office and wrote his resignation; wrote it short and to the point:

I’m through with this sheriff job right now.

Brick Davidson.

Brick showed it to Lafe.

"I'm goin' to present it right now," he announced, starting toward the saloon.

"Go easy, son," advised Lafe. "Keep cool and don't forget you ain't alone in this deal."

Brick smiled. Lafe Freeman was more like a father to him than any man had ever been, and the old cattleman's cool head had saved Brick from making a fool of himself many times. Brick walked into the saloon and up to Voorhies, who was at the bar. The conversation stopped as Brick came in. He and Voorhies faced each other and Voorhies was the first to turn his eyes away. Brick handed him the resignation, and watched Voorhies read it.

"Saves askin' yuh for it," remarked Voorhies, and then turned to the crowd. "Davidson has resigned as sheriff of Sun-Dog County."

Seldon grinned.

"Mebbe we'll get a sheriff now that won't insult folks."

"Maybe," nodded Brick good-naturedly. "Of course it all depends."

"Yuh heard about Martin, didn't yuh?" asked Voorhies.

Brick nodded and walked outside, followed by Barney O'Mera, who had stood near the door.

"Brick," he said; "it ain't none of my business, but I heard Kane tellin' Voorhies and Doc Meyers that you was out to the Weepin' Tree this mornin', and that you got Martin all excited over somethin'. Doc Meyers said it was likely the excitement that made Martin worse; *sabe?*"

"Well, I was talkin' with Mrs. Wesson and she said that Kane saw how you talked with Martin and that he pestered Martin for an hour or more, asking questions on paper. She said that Martin had to keep his eyes shut to make Kane quit. It ain't none of my business, Brick, but I thought yuh ought to know."

"Much obliged, Barney," said Brick. "Mighty good of you to tell me this."

"Not so danged good," smiled Barney; "but I want you to get a square deal as far as I can help yuh."

Brick went to the stable and found Silent saddling both horses.

“I don’t need to write a resignation, do I?” asked Silent. “I just natcherally quit and that’s all there is to it. That was the worst —— job I ever had.”

Lafe and Harp met them at the front of the office.

“Will yuh do me a favor, Harp?” asked Brick.

“Hope to die,” drawled Harp.

“Stay here in town this evenin’ and find out what they’re aimin’ to do, will yuh?”

“Be home by ten o’clock, bustin’ with news,” nodded Harp, and turned his horse back to the hitch-rack across the street. Brick, Silent and Lafe rode out of Marlin City, heading into the sunset, silently, except for the soft thud thud of horses’ hoofs in the soft dust, the creak of leather, jingle of bit-chains. From the side of a little butte came the sharp bark of a prairie-dog. Overhead came the shirl of a bull-bat. A great owl flapped softly across the road in front of them; a flying ghost, headed for an indistinct cottonwood clump.

“What did yuh do about them sheep?” asked Brick softly. Lafe jerked up his head as though Brick’s question had jarred him from sleep.

“The sheep? Voorhies decided that we might be liable for damages if we destroyed ’em. We argued it out, and finally agreed to have Barnhardt and Breamer take care of ’em until we can find the owner and make him take ’em away. They’re goin’ to hold ’em on the Weepin’ Tree ranch.”

“Seldon tell ’em he’d allow sheep on the Weepin’ Tree?”

“Uh-huh, kinda funny, Brick. Seldon and Voorhies both talks big against the sheep, but after they meets you today they kinda gets cold feet.”

“It’s to be expected,” grinned Brick. “Who do yuh reckon they’ll appoint for sheriff?”

“Some friend of Voorhies, you can bet on that,” replied Lafe.

“Voorhies is gettin’ too much to say about things. Somebody will come along and cut his comb some of these days, and there won’t be no mourners from the Nine Bar Nine.”

“He’s sold a lot of cattle lately,” observed Brick.

“Mostly everything he’s got,” replied Lafe. “I dunno what he means by sellin’ out so short. Maybe he’s goin’ to sell out.”

Brick grinned and shook his head.

“He’d better hurry, Lafe, ’cause there’s a big dust-storm gatherin’.”

Lafe looked curiously at Brick, but asked no questions.

It was a few minutes after ten o’clock when Harp rode in. Brick, Lafe and Silent were sitting on the ranch-house steps, and Harp delivered his news before stabling his horse.

“Voorhies got hold of Steve McLean and Sam Boyle, two of the commissioners, and they accepted your resignation, Brick. Then they proceeds to appoint Pete Kane sheriff. They’re goin’ to hold a coroner’s inquest tomorrow, and they’ve got it framed to swear out a warrant for you as soon as the jury brings in a verdict. Voorhies said there was no use holdin’ them shepherders so Kane turned ’em loose.”

Lafe grunted his disgust, but Brick made no comments.

“Sun-Dog County’s goin’ to the dogs,” complained Lafe. “I’m goin’ to oil up my old six-gun, y’ betcha. I ain’t acted foolish for a long time—years. Are yuh goin’ to fade out of the country, Brick?”

Brick got to his feet and leaned against one of the porch posts. A big, pale moon was just peeping over the mesquite-covered hills, casting a soft blue mist over the ugly corrals and low, mud-covered barns, and making them things of beauty. From the corral came the low bawling of a calf. Brick touched a match to his cigaret, and Lafe noticed that Brick was smiling. Brick snapped the match away and shook his head.

“No-o-o, I don’t reckon I will, Lafe. Fact of the matter is, I reckon I’m goin’ to become prominent, like a boil on a pug nose. Any time I run—I’ll be the one behind.”

The next morning after breakfast, Brick, Silent and Harp saddled their horses. Silent and Harp asked no questions as Brick tied the horseshoes to his saddle. Both of them had rifles in their saddle-boots and their belts showed no empty cartridge-loops. Lafe Freeman came down to the corral to get his horse and Brick observed that the old man was wearing his gun and belt. Old Lafe patted the gun and grinned foolishly.

“Feelin’ kinda chipper,” he chuckled. “Ain’t got a speck of old age in my system. Look!”

Came a snap of a palm against leather, and the old Colt seemed to hop from its holster into the old man’s hand.

“Trained that gun myself,” grinned Lafe, flipping it back into the holster with a twist of his wrist. “Could teach some of you young fellers a trick or two if I tried, y’ betcha. I’m goin’ to town now, and I reckon I’ll go heeled. Feller feels free to prognosticate when he’s got somethin’ on his hip besides the weight of his overalls.”

Brick slapped the old man on the shoulder and mounted his horse. Lafe did not ask where they were going; merely observed that they went across the hills toward the Weeping Tree instead of going around the road. He caught his horse, threw on a saddle and galloped down the road toward Marlin City. The trio rode slowly into the mesquite-covered hills, with Brick leading the way. Finally he broke the silence.

“Did either of you fellers ever see that Jack Smith before?”

“Not me,” said Silent.

“Nor me,” added Harp. “He’s buyin’ horses for the British Government.”

“Has he bought any?” asked Brick.

“I ain’t heard of none. Whatcha know about him, Brick?”

“Somewhere I’ve seen him, Harp. Where was it? I’ve been wonderin’ and wonderin’, and I can’t place him. If I had any brains I’d get a headache wonderin’ about him.”

“What does he amount to?” inquired Silent. “Forget him.”

“That’s why he amounts to something,” complained Brick. “I can’t forget him. That *hombre* amounts to somethin’, Silent. He didn’t stumble into my ankle that day accidental. He went plumb out of his way to walk on me, and he hit the floor so hard he forgot what he was to do next. Jeff Seldon called him a quitter. I wonder if—if he was tryin’ to pick a quarrel with me.”

Silent turned and looked at Brick’s grinning face.

“Now he’s happy, Harp. He’s happy to think that this horse buyer wanted to pick a fight. It don’t take much to please our pink-topped friend.”

Brick humped over his saddle horn and frowned under his low-pulled hat. He concentrated on Jack Smith. Feature by feature he analyzed that face; trying to remember where he had seen it, but in vain. Recognition was just beyond his grasp.

There was no sign of life at the Weeping Tree ranch-house, but when they rode into the quadrangle of the old buildings they saw Jeff Seldon coming from the door to his horse, which was tied at the old willow, which gave the ranch its name. They rode up to him and he looked up.

Seldon resembled an old buzzard more than ever, with his old faded Prince Albert coat which flapped around his thin shoulders and the once-white celluloid collar surmounting a dirty shirt.

“Lookin’ fer somebody?” he asked, and added, before they could reply, “There ain’t nobody home—but me.”

“You ain’t home,” said Brick.

Seldon bobbed his lean head.

“Yes, I am too. This here ranch belongs to me, if anybody asks yuh.”

“Where’s Miss Martin?” asked Brick.

“I dunno. She went home with Mrs. Wesson last night. Reckon she’s downtown. Goin’ to have the inquest today, yuh know.”

Brick’s face hardened as he looked down at Seldon. He noticed that Seldon wore a holstered gun under his flopping coat. For a few moments Brick looked at Seldon, then turned his horse and rode away, followed by Silent and Harp. They rode straight away from the ranch, into the hills, while Seldon mounted his horse and rode the other way—toward Marlin City.

Brick pulled up and looked back at the ranch-house. Far down the road he could see a tiny dust cloud kicked up by Seldon’s horse, as its owner raced to town. He would lose no time telling which way Brick had gone, and a posse would be on his trail as soon as the coroner’s jury brought in a verdict. Brick was positive there could be but one verdict.

Harp and Silent watched Brick sitting silently on his horse, gazing back. Finally Brick shook his head sadly.

“I reckon I’m due for trouble, boys. You fellers better go back now. It won’t be long before you’ll be reading reward notices——”

Brick stopped in the middle of his sentence and his hand went slowly to his forehead. He leaned forward in his saddle staring at the ground. Silent and Harp both leaned forward, seeking what Brick appeared to be watching, but there was nothing except bare, sandy ground. They exchanged glances, and then Silent spoke softly:

“He’s thinkin’, Harp; he’s thinkin’. Give him air, cowboy.”

Brick did not hear Silent. There was a deep crease between his half-shut blue eyes and his mouth was partly opened, as though panting from exertion. Suddenly he threw up his head and laughed aloud—a laugh of joy. His eyes flashed from Silent to Harp and he spurred his horse in a quick circle, headed down the hill.

“Come on!” he yelled. “I’ve got Jack Smith!”

Silent and Harp swung in behind him, and the three horses pounded down the hill past the ranch and swept into the road toward town. Silent and Harp did not know what Brick meant, did not know what lay before them, but they were willing to follow Brick wherever he might lead.

They rode straight down the main street of Marlin City to the sheriff’s office. The hitch-racks were filled with a motley collection of saddle-horses and vehicles, but not a person was in sight.

Marlin City did not have a court-house nor city hall, but held court in an old dancehall above Wesson’s store. Brick knew that this was where the crowd was congregated, making a big event of the coroner’s investigations.

At the front of the sheriff’s office they dismounted. Marlin City was very quiet. Suddenly a door banged shut. The three men whirled quickly, but it was only Le Blanc closing the door of his shop.

Le Blanc was dressed in his Sunday clothes and was smoking a cigar. He smoked three cigars a year: one on Christmas, one on the Fourth of July and another on his birthday. This day was none of the three, which proved the importance of the event. He fastened the door and then stared across at the sheriff’s office, shading his eyes with his hand.

He looked toward the front of the hall and then walked swiftly toward the office. The office door was unlocked—probably for the reason that Brick had forgotten to hand in his keys, and spring locks were still unknown

in Marlin City. There was no one inside. Brick stepped in, while Silent and Harp leaned against the doorway and watched the street.

Brick went swiftly along the walls, glancing from face to face on the old reward posters. Many of them were torn; the faces obliterated. Suddenly Brick stopped and felt of a certain old poster, but it was pasted tight. He took out his knife and cut out the section of sagging paper.

For a moment he studied the paper, and then put it in his pocket before coming to the door, where Le Blanc had joined Silent and Harp.

“Hello, Le Blanc,” smiled Brick.

The blacksmith slowly removed the cigar from between his bearded lips.

“H’lo, Breek. Me, I t’ink you be ’fraid for scare to come here today.”

Brick laughed.

“As bad as that, Le Blanc?”

“Ba gar, I’m t’ink she’s bad.” Le Blanc’s face was grave.

“She’s —— bad, Breek. Everybody she’s say bad t’ing about you.”

“Le Blanc, do you remember telling me about shoeing a horse in Dakota—putting on shoes without toe-calks?”

Le Blanc stared at the ground, rolling the cigar between his fingers. He looked up and nodded.

“Would you know that horse if you seen it?”

Le Blanc scratched his head, while he studied the matter.

“I’m don’ know, Breek. I’m shoe plenty cayuse—me. I’m be-lieve for sure dat she’s wan leetle brown mare. Mebbe two year ol’ by dat time—four year ago. De leetle mare she’s keek! Ha, ha, ha!”

Brick untied the horseshoes from his saddle.

“Come on,” he ordered, and the three men followed him to the saloon hitch-rack.

Brick circled the horses to the far side of the rack, where he went in between two of the animals, boosting one aside with a heave of his shoulder. He pointed to a brown mare, wearing a high-forked, beautifully stamped saddle.

Le Blanc cocked his cigar at an angle and walked around the mare. He examined its teeth; half-knelt and felt of its forelegs; and then grinned up at

Brick.

“You feel, Breek—here. De leetle cayuse got plenty scar from de toe-calk. All heal up now, but she be dere for sure.”

“Is that the mare?” asked Brick.

“I’m bet you my life,” Le Blanc was positive.

Silent touched Brick on the arm and pointed across the street.

Mrs. Wesson and Jean were just coming out of the hall entrance. They did not look toward the hitch-rack, but turned and went around the corner toward Wesson’s home. Brick watched them disappear. He turned back to Le Blanc, who was still looking at the brown mare.

“Did you know anything about the man who owned this mare?”

Le Blanc puffed on his cigar and shook his head.

“No, I’m no t’ink so, Breek. She’s jus’ have de job for me.”

“You’ve see the cowboy with Pete Kane?”

“De black wan? Ba gar—” Le Blanc removed his cigar and stared at Brick. “Ba gar, I’m t’ink I see dat face be-fore.” Brick took out the piece of paper which he had cut from the office wall, and let Le Blanc see it. For a moment the blacksmith stared at it and then laughed.

“She’s de man, Breek—sure t’ing. W’at de paper say, Breek? I’m can’t read de English.”

“Come on and I’ll show yuh,” replied Brick, and hurried for the hall entrance, with the three men trailing at his heels. At the bottom of the steps he stopped.

“Boys, there’s liable to be —— turned loose before noon. I’m tellin’ yuh in time.”

“Hurrah for crime!” grunted Silent. “If you disappoints me, Brick, I’ll massacre yuh. Let’s start the dance.”

“She’s beeg day for me,” grinned Le Blanc. “See—I smoke de see-gar.”

Harp did not make any statement; merely shifted his holster and started up the stairs.

“Take things easy,” cautioned Brick. “Remember they’re most all against us, but don’t spill any lead without yuh got a good reason. Watch me.”

“I hope somebody gits brave,” said Silent. “I do hope that much, ’cause I’m gittin’ rusty.”

Neither of the cowboys had seen what Brick cut off the wall of the office, but they knew that Brick had a reason.

The hall was about sixty feet long by thirty feet wide. At the front of the hall was a slightly raised platform, which held the judge's table and chair. Just in front of this platform stood a table, for the use of the lawyers.

The seats were, in the most part, made by placing a board between two backless chairs or between boxes. On the left side of the hall, as you came in, the seats extended against the wall. Down the center was a narrow aisle, and between the next row of seats and the opposite wall was another aisle.

On the platform sat Judge Grayson, the local justice of the peace, a dignified personage, but lacking any great amount of judicial knowledge. His pudgy hands were clasped around his flowered waistcoat and his florid countenance was cocked upward and sidewise above an all-too-high collar, as he followed the proceedings. About fifteen feet in front of him was the first row of seats. To his right, as he sat facing the door, was another row of seats, presumably placed at that angle for the use of a jury. Behind this row of seats was the doorway to a small ante-room.

As Brick led his men inside the hall, six men were just coming out of this ante-room. It was the coroner's jury, bringing in their verdict on the death of Scott Martin.

Every available seat was taken and standing room was at a premium. Women did not attend court in Marlin City—probably for the reason that nobody knew just what might happen in a Sun-Dog court room. Mrs. Wesson and Jean had left, after giving their evidence.

Every eye in the room was focused on this jury, and none saw Brick Davidson moving softly up the outside aisle, going to the front of the room. Silent, Harp and Le Blanc separated and followed over half-way up the aisles, attracting no attention. Brick moved up the room until he was near the table in front of the judge, and facing the jury. On the front row of seats sat Lafe Freeman, sitting between Bun Partner and Barney O'Mera.

On a chair, which had been moved out beyond the front row, and near the jury seat, sat Pete Kane, the newly appointed sheriff. On the second row of seats Brick could see the swarthy face of Jack Smith; eyes half-closed as he watched the jury.

Seldon, Voorhies, Jack Sloan, a gambler, Mel West, owner of the Emporium hotel, Frank Padden, a cattle-buyer, and “Tiny” Taylor, a Bar M cowboy, composed the jury.

Doctor Meyers had been sitting on the front row of seats, but now he got to his feet and faced the jury.

“Have you arrived at a verdict?” he asked.

Voorhies got ponderously to his feet and nodded.

“We have, Doc. We finds that Scott Martin was shot by Brick Davidson, the sheriff, actin’ in—uh——”

“Excess of his duty,” prompted Mel West.

“Excess of his duty,” parroted Voorhies. “And we asks that Brick Davidson be arrested for mur——”

Voorhies, stumbling over his verdict and request, had lifted his eyes and looked straight at Brick Davidson. Brick was looking at Voorhies, a half-smile on his lips; his right hand resting on his hip, while in his left hand he dangled the two horseshoes.

Seldon looked up at Voorhies, as did West, who again prompted—

“Murder.”

But Voorhies did not complete his sentence. He started as though to sit down, but straightened up again. Every one was watching him closely. West touched him on the arm, but Voorhies did not respond. Then Judge Grayson turned and looked at Brick, who was only a few feet away. For an instant the judge stared. His hands unlocked from around his fancy waistcoat, and he took a deep breath—a breath that was audible to all.

Then every man in the hall looked at Brick. Pete Kane half turned in his chair and looked at Brick, his mouth open in astonishment. Kane had visions of a man hunt in the hills, in which he would be the leading character.

Not a man in the audience, except those who came with Brick, and possibly Lafe Freeman, ever expected to see Brick at the inquest. Not a word was spoken. The crowd leaned forward. This had put a new light on what was to have been an ordinary inquest, in which every one seemed to know the verdict before the jury was even drawn.

Brick let his eyes drift over the audience and then back to Voorhies.

“Murder, eh?” Brick’s voice was softly pitched. “Found me guilty of murder, did yuh? Well, well!”

Voorhies wet his lips with his tongue.

“The evidence—” he began hoarsely.

“Set down, you sheep owner!” snapped Brick, and Voorhies dropped back as though from a pistol shot.

The smile had left Brick’s face. He glanced quickly behind him. Chet Malloy, a cowboy, was leaning against the wall, almost in a direct line with Brick and Voorhies. Instead of stepping out of line, which might attract attention to him, Malloy hunched down, slid his feet out and sat flat on the floor. Brick merely flashed the look and turned back, but Malloy knew what it meant. Brick looked at Seldon, and Seldon squirmed.

“Steady, son,” cautioned Lafe Freeman, and his whisper was audible to all parts of the room. No one even glanced at Lafe.

“I wasn’t invited to this inquest,” observed Brick; “but it ’pears to me that I should ’a’ been.”

“If you’ve got any evidence—” began Dal Melchior apologetically.

Brick tossed the horseshoes to the table-top. For a moment the tension was broken, as the audience leaned forward for a view of the horseshoes. A cowboy started forward, as though to come up to the table.

His boot-soles squeaked loudly, and he stepped back quickly, bumping into another cowboy, who had also started forward, and they both sat down awkwardly in the same chair. No one paid any attention to them, but they remained in that position, with the under man craning his neck around the other’s shoulder.

Voorhies took advantage of the lull to attract Kane’s attention.

“Get your man, Pete!”

Voorhies did not intend to make his order audible to every one. Brick laughed mockingly.

“Any time you’re ready, Kane.”

But Kane did not heed Voorhies’ order nor accept Brick’s challenge. Rather he ignored both.

“The law gives a feller the right to be heard, don’t it?” asked Brick.

“Go ahead, son,” chuckled Lafe. “They’ll all listen.”

Lafe had slid his belt around when he sat down and the butt of his old single-action Colt was concealed under his folded hands. In this position he could get into action without any unnecessary motion, and nobody could check him by grasping his arms.

Brick glanced around at the crowd. Sitting, humped down in their chairs near the center aisle, were the two shepherders. Standing in the aisle, with his left hand resting on the back of Sharpshooter’s chair, was Le Blanc, who nodded toward the two shepherders as he caught Brick’s eye. Le Blanc was not armed, but depended on his mighty hands for offense or defense. Brick looked at Kane.

“Turned the shepherds loose, did yuh?”

“There wasn’t nothin’ to hold ’em on,” growled Kane.

Brick nodded.

“That’s right, I reckon, only yuh turned ’em loose too late to do you any good.”

“What do yuh mean?” asked Kane.

“They wasn’t hired to miss nor talk. They done both, Kane.”

Came a sudden movement, as Sharpshooter started out of his chair, but Le Blanc’s hand clamped on his shoulder and shoved him back.

“She’s h’all right here, Breek,” boomed Le Blanc.

Kane glared at Brick and then looked at Seldon, who was humped up in his seat; his skinny head drawn down into his collar, like an old snapping-turtle. His eyes flashed like a pair of amber beads, and his hands fussed nervously with the lapels of his coat.

“What about them horseshoes?” asked Sloan.

“The man who shot Scott Martin rode the horse that wore those shoes,” declared Brick.

“Where did yuh get ’em, Brick?” inquired Cale Wesson.

“Hangin’ to a nail on the shepherders’ cabin,” grinned Brick.

“Tryin’ to hang the crime on a poor shepherd, are yuh?”

Seldon’s question was a whining bit of sarcasm.

“No-o-o.” Brick pursed his lips and shook his head, as though he was correcting a child. “Yuh don’t need to get nervous, Seldon, ’cause I’m goin’ to hang the deadwood right where she belongs. Tell me about this here deed to the Weepin’ Tree ranch, will yuh?”

“What’s that got to do with it?” growled Seldon.

“Just to prove that yuh own it, Seldon.” Seldon took a folded document from inside his coat and tossed it to the table.

“Anybody here know Zell Mohr’s signature?” inquired Brick.

“I do,” replied Judge Grayson. “Know it well.”

Brick handed him the deed, and the judge studied it closely, while the crowd seemed to relax.

“No question about it,” declared the judge. “That’s Zell Mohr’s writing and signature. It is witnessed by Pete Kane and Bill Voorhies. Ain’t nobody writes just like Zell did.”

“Voorhies, did you witness this deed?” asked Brick.

“I did.”

“Satisfied?” sneered Seldon.

“Of certain things,” nodded Brick. “Is it recorded?”

“Not yet. I been kinda busy and——”

“You hang onto it, judge,” ordered Brick.

Seldon shot to his feet.

“Gimme that deed!” he shouted. “That belongs to me, you—you——”

“Calm down,” advised Brick softly, and then snapped, “Set down!”

Seldon dropped back into his seat, shaking with anger. Brick looked at Jack Smith for several seconds.

“Your name is Smith?”

Smith shifted his feet and seemed inclined to ignore the question, but finally nodded.

“Buyin’ horses for the British Government?”

Smith was plainly irritated.

“What’s the meanin’ of the questions?” he growled.

“Would yuh mind coming up on a front seat?” asked Brick. “I want yuh where I won’t have to talk over other folks.”

Smith’s eyes narrowed and he started to fold his arms.

“The red-headed gent asks a favor,” said Silent, who had moved in close to the end of Smith’s row of seats.

Smith looked up at Silent, who towered over him. The two men between Silent and Smith obligingly got up and moved into the aisle. Somebody laughed aloud.

“Sh-h-h!” cautioned a voice.

Smith got up slowly and came out past Silent. Brick pointed to a space in front, two men removed from Lafe Freeman, and Smith sat down.

Immediately the men behind him either left their seats or moved aside. The men of Sun-Dog could read signs. Pete Kane sat leaning forward, with his elbows on his knees, never taking his eyes off Brick. He might be able to catch Brick off his guard, but he knew that he would have to contend with Harp, Silent and Lafe.

“Feel better now?” queried Smith uneasily.

Brick nodded and turned more toward the jury.

“I’m talkin’ straight to you jurymen, but my conversation affects every man in the room. Seldon, I asks yuh to keep your hands in sight and try to be calm. In regards to your hands—I only asks this once.”

Seldon’s jaw tightened, but he obeyed.

“You all know that sheep ain’t wanted in Sun-Dog,” continued Brick. “Legally they’ve got as much right as cows, but morally they ain’t—not accordin’ to our morals. If the sheep got protection from the sheriff, with the assistance of a few cattlemen, they might get a start. If they once got started they’d sheep out Sun-Dog inside of a year. To get a start, they’ve got to have a friendly sheriff.”

“Is this a inquest or a speech?” demanded Voorhies. “I moves that we _____”

“Overruled,” interrupted the judge. “Let Brick talk.”

“There’s a man on this range,” continued Brick, “who hates the cattle association. He’s plumb stingy, but he’d give his right eye to see the cattlemen put out of business; and there ain’t nothin’ as sudden as sheep. Am I right?”

The crowd murmured a ready assent.

“There’s another man on this range, who has sold most all of his stock in the last six months, and I’m bettin’ that at least twenty per cent of that stock wasn’t never bought nor raised by him.”

Voorhies sprang to his feet and took a step toward Brick.

“The boot fits him!” yelled Lafe Freeman, and the crowd laughed. Voorhies flushed angrily and stumbled backward into his seat, knowing he had blundered badly.

“That man,” smiled Brick, “wants to own the county. He never could be a big cattleman; so he decided to be a sheep king. He bought two hundred head——”

“Prove it!” roared Voorhies, struggling to his feet. “Prove it!”

“Set down,” advised Brick. “You’ve proved it yourself. I wasn’t sure until now, but I know that you and Seldon owns ’em together. The Sharpshooter and his pardner were hired to bring in them sheep. You kinda figured that I’d be in jail for the killing of Scott Martin, and you’d have your own sheriff, but you made a mistake when you let Sharpshooter know that you were willin’ to pay for my scalp. Bein’ a case of two-to-one, they could prove self defense, and my recent reputation would make it easy for them.”

Brick smiled at the expression on the faces of the jury.

“Keep talkin’, Brick,” urged a cowboy joyously.

“What’s this got to do with the killin’ of Scott Martin?” asked Seldon hoarsely.

“Scott Martin was killed for two reasons; to get me and him both out of the road, and to get somethin’ that Scott Martin owned.”

The audience watched Brick closely, silently.

“The man who killed him—or thought he had killed him—rode a horse that wore them shoes. Likely there was more than one man. Maybe there was three or four. One of ’em rode a horse, which wore them shoes.

“Do yuh know where that old tumbledown cabin is along the Weepin’ Tree road? They bushwhacked him from there. He fell just at the edge of the road. I seen where his hand made a track in the dust. There was blood on the dusty grass at the edge of the road.

“They thought he was dead, I reckon; so they carried him down the cañon to where they had the calf all roped and the fire all set. Then they robbed Scott Martin, and left him there to prove that I killed him for maverickin’ a calf. Other calves have been mavericked with the Weepin’ Tree to cinch things.”

“What about this robbery?” asked Cale Wesson.

Pete Kane’s right hand slipped slowly off his knee. “Don’t mind me, Kane,” smiled Brick. “I don’t want all the best of it.” Kane slowly brought his hand back to his knee.

“The main idea was to make a sheep ranch of the Weepin’ Tree,” explained Brick.

“That’s a —— lie!” shrieked Seldon, starting to his feet, but Voorhies pulled him back.

“They shot Martin in the back with a .41. Yuh see, I shoot a .41. My, my, but they sure did frame me nice! Accordin’ to their view of it, I didn’t have a chance on earth. Gents, they sure did frame me to a fare-thee-well, but they overlooked one of the big points.

“Their scheme was horse-high, bull-strong, and sheep-tight, but they didn’t know that the big gate was wide open. They sure did leave a hole that yuh could drive a team through.

“Zell Mohr got Scott Martin to come to Marlin City. He knowed that Scott didn’t have much money; so he let Scott have the Weepin’ Tree ranch. He wrote out a paper, which showed that nobody but Zell Mohr could make Martin move off the ranch.

“Zell Mohr, bein’ dead, and not havin’ any relations—well, it kinda lets Scott Martin stay on the Weepin’ Tree, don’t it? Scott Martin had that paper with him the day he was shot, and the man or men who shot him took the paper. They wanted to get a sample of Zell Mohr’s writin’ and also his signature, which no man could make without a copy, and he had to be some hand-writer to do it at all. Judge Grayson has the deed that was made thataway.”

“What’s this?” gasped the judge. “A forged deed?”

Brick did not turn, merely nodded his head as he leaned forward, hooking his thumb over the belt above his gun. Lafe Freeman leaned forward, hunching low over his folded hands. Silent stepped a little closer, while Harp shoved away from the wall and rubbed his hands on his hips.

“Yes, it was forged, judge,” replied Brick evenly. “I don’t blame yuh for mistaking it for the real thing.”

Seldon got to his feet and spat contemptuously.

“How do yuh make out a thing like that? That’s Zell Mohr’s writin’ and his signature. You’re cinched, Davidson; and you’re framin’ a cock and bull story to try and clear yourself. Who in —— could write like Zell Mohr? Eh? Tell me that, will yuh?”

“No Sun-Dogger,” smiled Brick. “We ain’t educated enough for that, Seldon.”

Brick was looking at Smith as he talked to Seldon, but now he spoke directly to Smith.

“Smith, you’re a clever man.” Brick’s tone was merely conversational, with a tinge of admiration. “Education sure done things for you. Now, if you was plumb ignorant like the rest of us you’d be safe and happy, don’t yuh know it?”

Smith tried to smile and barely managed to contort his features. He was getting more uncomfortable each minute.

“Yuh made a mistake in Dakota, Smith,” stated Brick.

Smith’s head jerked up and into his black eyes came a hunted look, but he did not blink.

“You kinda had me up a tree,” continued Brick slowly. “That deed kinda had me wonderin’ a few things, too. I knowed I had seen your face somewhere, but I’ll be danged if I could place yuh. No, I never met yuh, Smith.

“I didn’t know yuh—not personally, but I sure did need yuh. Did yuh ever set into a game of poker, with a bob-tail straight in your hand? Yuh had everything, except the one card, to make a bettin’ hand. You was the filler for my bob-tail.

“Yessir, I needed you—bad. Fact of the matter is, I needed yuh as bad as Seldon did. My, my, but you was a handy man, Smith.”

Brick grinned. Every man in the house knew things were drawing to a climax. Lafe Freeman had hunched to the very edge of his chair, and was watching Voorhies and Seldon like a hawk. Brick's eyes shifted from Smith and he appeared to be talking to every one now.

"Gents, do yuh remember that I got a thousand dollars for cleanin' up Zell Mohr and his gang? Well, before Zell was sent on his way to the penitentiary, me and him had a talk. He was kinda sorry about his end of the deal—what he done to Martin. Zell didn't have nobody to leave his property to, and he didn't have no use a-tall for the Weepin' Tree ranch; so me and him talked turkey, and he sold me the Weepin' Tree ranch for—one—thousand—dollars!"

Brick drew the document from his pocket and tossed it beside the horseshoes.

"There's the hole in their scheme," said Brick, and then took out the piece of paper he had cut from the office wall, and tossed it beside the deed.

"There's an old reward notice for Carl Garcia alias Jack Carl; wanted in Dakota for forgery and murder. He's the man who killed or helped kill Scott Martin, and he's the man that Seldon hired to forge the deed to the Weepin' Tree. He's knowed by several names, but I'll add—

"Jack Smith!"

As Brick snapped the name his hand flashed for his gun.

Smith was game. He threw himself forward, with one hand buried in his coatpocket, grasping a gun, but Harp's pistol spouted fire and Smith stumbled head first almost at Brick's feet.

Kane threw himself sidewise, shooting from an awkward angle and masking Voorhies and Seldon. Kane managed to fire three times, but his bullets were going wide of their mark—partly on account of his haste, but more because Brick was shooting deliberately and was not missing.

As Kane plunged to the floor with three of Brick's bullets dragging him down, Voorhies, slow of movement, swung his gun forward, but before he could pull the trigger Lafe's old Colt roared for the first time in years and Voorhies crashed back into Seldon, spinning the old man half-around.

Seldon screamed a curse and shot at Brick from his hip. Brick felt the bullet strike like the blow of a hammer, but he braced himself, shot twice at Bun Partner, who was trying to pull down on Lafe, and fired his last shot at

Seldon, just as Seldon staggered through a jumble of upset seats and sprang for the open window.

Seldon turned half-around, dropping his gun; but his iron nerve carried him to the window and over the sill, where he fell to the street below. Brick's bullets whirled Partner around and he sprawled across a chair, but his one shot had torn through Lafe Freeman's right arm, inflicting a painful wound.

Brick looked around, dazed. At his feet lay Smith, with Harp straddling his body. Voorhies was sprawled on his back, with one arm over the seat of the chair, almost on top of Pete Kane, who lay face down.

Silent was holding Lafe Freeman by the arm, and the old man's face was very white. In the center of the room was a commotion, and above it all came the roaring voice of Le Blanc:

"Go 'head, Breek! I'm got shepherd in bot' hand!"

Judge Grayson had fallen backward out of his chair at the first shot, and remained in that position until now, when he got blindly to his feet, groped for his gavel and struck his desk a ringing blow.

"Order in the court!" he cried, but no one gave him a thought. Brick tried to go to Lafe's assistance, but the room began to spin like a top. He heard Lafe saying:

"That's all right, Brick; that's all right. I only got hit in the arm."

Then he heard some one saying:

"By ——, they did hit him!"

Then everything went black for Brick Davidson, but he felt strangely indifferent.

Brick blinked his eyes and stared at the ceiling. He turned his head on the pillow and looked at the wall, where the dim faces on the old reward posters stared down at him. Near his cot stood a chair, on which were several medicine bottles and a water glass, over the top of which had been placed a playing-card, surmounted by a sticky-looking spoon.

Brick's eyes shifted back to the wall. Slowly he remembered the fight in the hall; remembered that he had been hit by a bullet. But what was he

doing in a bed in the sheriff's office? Hadn't he proved his case? Was he a prisoner? He listened. Somewhere there was music.

"Hong-g-g-g, hung-g-g-g, um-m-m, hong-g-g," sounded the doleful humming of a jew's harp.

"Harp," called Brick, and his voice was strangely weak. Came the scraping of feet, as Harp unhooked himself from his favorite seat in the doorway; and he walked up to Brick, wiping his mouth with the back of his hand. He grinned down at Brick.

"Gosh!" he chuckled. "Yuh finally did wake up, did yuh, sheriff?"

"Sheriff?" wondered Brick aloud.

"Y' betcha. The commissioners met and refused to take your resignation; and so me and Silent moved yuh in here. You got a slug through yuh, but Doc Meyers fished it out and he says you'll be all hunkydory now. Old Seldon had the .41 that hit yuh. I reckon Smith is goin' to be able to attend his own trial; but Partner won't care which way it goes, 'cause he cashed in quick. Kane lived long enough to go out kinda clean. He said that him and Smith and Seldon shot Scott Martin, but he didn't get time enough to tell which one done the job. Smith handled the sheep deal for Seldon and Voorhies; so that nobody'd know who was doin' it."

"How's Lafe?" asked Brick, suddenly remembering that Lafe was hurt in the fight.

"Goin' around with one arm in a sling and braggin' about how fast he is with a gun. Thinks he done it all."

Harp laughed and leaned closer.

"A couple of ladies have been in to see yuh every little while. I told Mrs. Wesson that they didn't give you a square deal a-tall by thinkin' you was guilty. Y' betcha, I gave 'em particular——"

Brick shifted his eyes away and Harp grinned.

"Didja ever rub Mrs. Wesson the wrong way, Brick? Don't never do it. Whoo-ee! But say, Brick; they both knowed you wasn't guilty."

"Why—" began Brick weakly.

"Lemme tell yuh, Mrs. Wesson's a wise lady owl. Them two knowed you wasn't guilty. Mrs. Wesson didn't care if you did know how she felt, but she made Miss Martin act like she thought you was guilty."

“But why?” asked Brick.

“Mrs. Wesson told her it would make yuh feel bad for a while and then you’d git mad as —— and start throwin’ dust. She said you had plenty of brains, but that you couldn’t be happy and be smart all at the same time.”

Brick smiled up at the ceiling and shook his head at the wonderful wisdom of some women, while Harp leaned on the edge of the bed and clumsily arranged the blankets.

“Mind if I play yuh a tune, Brick?”

Brick looked at Harp’s homely face and smiled.

“Wish yuh would, Harp—thanks. If yuh feel like singin’—go to it.”

“Gittin’ shot sure does create a hankerin’ for music,” observed Harp. “I could sing, but I reckon I’ll stick to the harp.”

Harp started for the door, but stopped.

“When yuh git well, I don’t want yuh to point out the fact that I picked on yuh when yuh was flat on your back, Brick.”

“Go ahead and play,” grinned Brick. “I—I don’t think I’d mind anything now.”

It was neither a request nor a compliment to Harp’s musical ability; rather it was a concession, but Harp was hard-boiled, and all he needed was a chance to play.



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*** END OF THE PROJECT GUTENBERG EBOOK THE SHERIFF OF
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